महाराष्ट्र शासन

GOVERNMENT OF MAHARASHTRA

ई-सुरक्षित बँक व कोषागार पावती

e-SECURED BANK & TREASURY RECEIPT (e-SBTR)

21641783060866

Bank/Branch: IBKL - 6910241/Nagpur
Pmt Txn id : 2964324952
Pmt DtTime : 10-DEC-2025@19:01:47
ChallanIdNo: 69103332025121050498
District : 4601-NAGPUR

Stationery No: 21641783060866
Print DtTime : 11-DEC-2025 11:37:30
GRAS GRN : MH013221823202526S
Office Name : IGR383-NGP1_HQR SUB REG
GRN Date : 10-Dec-2025@19:01:48

StDuty Schm: 0030046401-75/STAMP DUTY
StDuty Amt : R 4,39,700/- (Rs Four, Three Nine, Seven Zero Zero only)

RgnFee Schm: 0030063301-70/Registration Fees
RgnFee Amt : R 0/- (Rs Zero only)

Article : 5(h)(A)(iv)--Agreement creating right and having monetary value
Prop Mvblty: N.A. Consideration: R 21,98,27,600/-
Prop Descr : Investment Agreement

Duty Payer: PAN-AAACX2877R,XSIO LOGISTICS PARKS PRIVATE LIMITED

Other Party: PAN-AACCJ2346P,HORIZON INDUSTRIAL PARKS LIMITED

Bank official1 Name & Signature

ऋषिकेश श्रीखंडे / RUSHIKESH SHRIKHANDE
कनिष्ठ सहायक प्रबंधक / Jr. Assistant Manager
(JAM)
१४४६६४ / 144664
आई डी बी आई बैंक लि. / IDBI Bank Ltd.

रजनीश उपाध्याय
Rajneesh Upadhyay
EIN-107494
Civil Lines, Nagpur.

Bank official2 Name & Signature

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Stamp paper for the Investment Agreement dated December 12, 2025

e-SBTR IS VALID UPTO SIX MONTHS FROM THE DATE OF PAYMENT.

महाराष्ट्र शासन

GOVERNMENT OF MAHARASHTRA

ई-सुरक्षित बँक व कोषागार पावती

e-SECURED BANK & TREASURY RECEIPT (e-SBTR)

21641782965325

Bank/Branch: IBKL - 6910241/Nagpur
Pmt Txn id : 2964327166
Pmt DtTime : 10-DEC-2025@19:12:29
ChallanIdNo: 69103332025121050506
District : 4601-NAGPUR

Stationery No: 21641782965325
Print DtTime : 11-DEC-2025 11:33:32
GRAS GRN : MH013222456202526S
Office Name : IGR383-NGP1_HQR SUB REG
GRN Date : 10-Dec-2025@19:12:30

StDuty Schm: 0030046401-75/STAMP DUTY
StDuty Amt : R 500/- (Rs Five Zero Zero only)

RgnFee Schm: 0030063301-70/Registration Fees
RgnFee Amt : R 0/- (Rs Zero only)

Article : 35--Indemnity Bond
Prop Mvblty: N.A. Consideration: R 500/-
Prop Descr : INVESTMENT AGREEMENT

Duty Payer: PAN-AAACX2877R,XSIO LOGISTICS PARKS PRIVATE LIMITED

Other Party: PAN-AACCJ2346P,HORIZON INDUSTRIAL PARKS LIMITED

Bank official1 Name & Signature

ऋषिकेश श्रीखंडे / RUSHIKESH SHRIKHANDE
कनिष्ठ सहायक प्रबंधक / Jr. Assistant Manager
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रजनीश उपाध्याय
Rajneesh Upadhyay
EIN-107494
Civil Lines, Nagpur.

Bank official2 Name & Signature

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Stamp paper for the Investment Agreement dated December 12, 2025

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महाराष्ट्र शासन

GOVERNMENT OF MAHARASHTRA

ई-सुरक्षित बँक व कोषागार पावती

e-SECURED BANK & TREASURY RECEIPT (e-SBTR)

21641783194453

Bank/Branch: IBKL - 6910241/Nagpur
Pmt Txn id : 2964328490
Pmt DtTime : 10-DEC-2025@19:19:19
ChallanIdNo: 69103332025121050508
District : 4601-NAGPUR

Stationery No: 21641783194453
Print DtTime : 11-DEC-2025 11:41:23
GRAS GRN : MH013222836202526S
Office Name : IGR383-NGP1_HQR SUB REG
GRN Date : 10-Dec-2025@19:19:20

StDuty Schm: 0030046401-75/STAMP DUTY
StDuty Amt : R 500/- (Rs Five Zero Zero only)

RgnFee Schm: 0030063301-70/Registration Fees
RgnFee Amt : R 0/- (Rs Zero only)

Article : 5(h)(B)(vi)--Agreement-if not otherwaise provided for
Prop Mvblty: N.A. Consideration: R 500/-
Prop Descr : Investment Agreement

Duty Payer: PAN-AAACX2877R,XSIO LOGISTICS PARKS PRIVATE LIMITED

Other Party: PAN-AACCJ2346P,HORIZON INDUSTRIAL PARKS LIMITED

Bank official1 Name & Signature

ऋषिकेश श्रीखंडे / RUSHIKESH SHRIKHANDE
कनिष्ठ सहायक प्रबंधक / Jr. Assistant Manager
(JAM)
१४४६६४ / 144664
आई डी बी आई बैंक लि. / IDBI Bank Ltd.

रजनीश उपाध्याय
Rajneesh Upadhyay
EIN-107494
Civil Lines, Nagpur.

Bank official2 Name & Signature

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Stamp paper for the Investment Agreement dated December 12, 2025

e-SBTR IS VALID UPTO SIX MONTHS FROM THE DATE OF PAYMENT.

DATED DECEMBER 12, 2025

INVESTMENT AGREEMENT

AMONGST

ASHISH AGRAWAL

AND

RAJESH STEEL INDUSTRIES PRIVATE LIMITED

AND

VIDARBHA CARGO PRIVATE LIMITED

AND

XSIO LOGISTICS PARKS PRIVATE LIMITED

AND

HORIZON INDUSTRIAL PARKS LIMITED

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INVESTMENT AGREEMENT

This **INVESTMENT AGREEMENT** is executed on December 12, 2025 (the "**Execution Date**") at Nagpur, Maharashtra by and amongst:

1. **ASHISH AGRAWAL**, an Indian resident individual, with permanent account number AAKPA1677K and residing at Plot No.300, Opp. Hislop College, Chitanvis Marg, Civil Lines, Nagpur – 01 (hereinafter referred to as "**Promoter 1**", which expression shall, unless repugnant to the context or meaning thereof, include his successors, executors, legal heirs, administrators, and permitted assigns);

2. **RAJESH STEEL INDUSTRIES PRIVATE LIMITED**, a company incorporated under the Companies Act, 1956 and having its registered office at Block No. 402, M.G. House, Ravindra Tagore Marg, Civil Lines, Nagpur, Maharashtra – 440 001 and having permanent account number AAACR6147E (hereinafter referred to as "**Promoter 2**", which expression shall, unless repugnant to the context or meaning thereof, include its successors and permitted assigns);

3. **VIDARBHA CARGO PRIVATE LIMITED**, a company incorporated under the Companies Act, 2013 and having its registered office at Block No. 402, M.G. House, Ravindra Tagore Marg, Civil Lines, Nagpur, Maharashtra – 440 001 and having permanent account number AAGCV2636N (hereinafter referred to as the "**VCPL**", which expression shall, unless repugnant to the context or meaning thereof, include its successors and permitted assigns);

4. **XSIO LOGISTICS PARKS PRIVATE LIMITED**, a company incorporated under the Companies Act, 2013 and having its registered office at Block No. 402, M.G. House, Ravindra Tagore Marg, Civil Lines, Nagpur, Maharashtra – 440 001 and having permanent account number AAACX2877R (hereinafter referred to as the "**Company**", which expression shall include its successors and permitted assigns); and

5. **HORIZON INDUSTRIAL PARKS LIMITED**, a company incorporated under the Companies Act, 1956 and having its registered office at One World Centre, Unit No 1501B, Tower 1, 841, Jupiter Textile Mills, Senapati Bapat Marg, Mumbai City, Mumbai, Maharashtra, India – 400 013 and having permanent account number AACCJ2346P (hereinafter referred to as "**HIPL**", which expression shall, unless repugnant to the context or meaning thereof, include its successors and permitted assigns);

Promoter 1 and Promoter 2 may hereinafter be referred to individually as a "**Promoter**" and collectively as the "**Promoters**".

VCPL, HIPL, Promoter 1, Promoter 2 and the Company shall hereinafter be referred to individually as a "**Party**" and collectively as the "**Parties**".

WHEREAS

(A) The Company was incorporated, promoted and owned by the Promoters and/or their nominees for the purpose of undertaking the Business.

(B) VCPL had acquired the entire issued and paid-up share capital of the Company from the Prior Shareholders on the Acquisition Date. The Company is presently a wholly-owned subsidiary of VCPL. HIPL is the majority investor in VCPL.

(C) VCPL has, at the request of the Company and the Promoters, advanced to the Company certain inter-corporate deposit in an aggregate principal amount of Rs. 20,58,87,600/-

(Rupees Twenty Crores Fifty Eight Lakhs Eighty Seven Thousand and Six Hundred only) ("**VCPL Loan**").

(D) The Company has requested VCPL to provide additional financial assistance, and VCPL is desirous of investing the Aggregate Subscription Amount by subscribing to the Company OCDs in accordance with the terms and subject to the conditions set out in this Agreement.

(E) HIPL, as the majority investor in VCPL and having an indirect investment in and economic exposure to the Company through its shareholding in VCPL, agreed to the acquisition of the Company by VCPL, the extension of the VCPL Loan to the Company and the subscription by VCPL of the Company OCDs, on the basis of the terms of this Agreement.

(F) Accordingly, the Parties are entering into this Agreement to record and set out certain representations, warranties, covenants and indemnities provided by the Promoters.

NOW THEREFORE, in consideration of the foregoing and other good and valuable consideration, the receipt and adequacy of which are hereby expressly acknowledged, the Parties, intending to be legally bound, hereby agree as follows:

1. DEFINITIONS AND INTERPRETATION

1.1 Definitions

"**Abhishek**" shall mean Abhishek Agrawal, an Indian resident individual, with permanent account number AEEPA9438E and residing at Plot No.300, Opp. Hislop College, Chitanvis Marg, Civil Lines, Nagpur – 01;

"**Accounting Principles**" shall mean applicable accounting standards issued by the Institute of Chartered Accountants of India, including the Indian Accounting Standards and generally accepted accounting practices and principles in India;

"**Acquisition Completion**" shall mean the completion of Transfer of the Sale Shares by Prior Shareholders in favour of VCPL and Promoter 1 (VCPL's nominee shareholder) on the Acquisition Date in accordance with applicable Law;

"**Acquisition Date**" shall mean April 11, 2025;

"**Act**" shall mean the Companies Act, 1956 and/or the Companies Act, 2013, as applicable, and as may be amended, modified, supplemented or re-enacted thereof from time to time;

"**Addendum to the GoM Offer Letter**" shall have the meaning ascribed to it in Paragraph 10(iv) of Part B of Schedule II;

"**Affiliate**" shall mean, with respect to any Person, any other Person, which, directly or indirectly, Controls, is Controlled by or is under common Control with the first named Person, whether acting individually or in concert, including any right arising by virtue of shareholding, management rights, Contract or otherwise, provided that HIPL shall not be considered an Affiliate of the Promoters, or *vice versa*, for the purposes of this Agreement. If such Person is an individual, the term "**Affiliate**" shall include a Relative of such individual;

"**Agreement**" shall mean this investment agreement, together with the Schedules hereto, as may be amended, modified or supplemented from time to time, in accordance with its terms;

“**Aggregate Subscription Amount**” shall mean Rs. 20,58,87,600/- (Rupees Twenty Crores Fifty Eight Lakhs Eighty Seven Thousand and Six Hundred only);

“**Anti-Corruption Laws**” shall mean any Law of any jurisdiction in which the Company performs business, or of the United States, or of the United Kingdom, including without limitation, the (Indian) Prevention of Corruption Act, Central Act No.49\1988, the Foreign Corrupt Practices Act of 1977, as amended, the U.K. Bribery Act of 2010, and where applicable, legislation enacted by member states and signatories implementing the OECD Convention Combating Bribery of Foreign Officials in International Business Transactions;

“**Anti-Money Laundering Laws**” shall mean applicable financial record-keeping and reporting requirements of the (Indian) Prevention of Money Laundering Act, 2002, as amended, the U.S. Currency and Foreign Transaction Reporting Act of 1970, as amended, the U.S. Money Laundering Control Act of 1986, as amended, and all anti-money laundering Laws issued, administered or enforced by any Governmental Authority in other jurisdictions where the Company conducts business or owns Assets;

“**ATL**” shall mean the ‘*Agreement to Lease*’ which shall be entered into between MIDC and the Company in a form and substance satisfactory to HIPL, and under which MIDC shall *inter alia* agree to grant to the Company, leasehold rights along with rights to enter the Company Land for purposes of setting up a factory building (industrial purpose and logistics park). For the avoidance of doubt, the term “**ATL**” shall also include the draft of the Lease Deed annexed to the ATL;

“**ATL Date Title Representations**” shall mean the representations and warranties set out in Paragraph 11 of Part B of **Schedule II**;

“**ATL Execution Date**” shall mean the date on which the ATL is executed to the satisfaction of HIPL;

“**ATL Milestone**” shall mean: (i) completion (to the satisfaction of HIPL) of all actions as may be required for obtaining the ATL; and (ii) obtaining a duly executed, stamped and registered ATL in accordance with applicable Laws, in a form and substance satisfactory to HIPL;

“**Articles**” shall mean the articles of association of the Company;

“**Beneficial Owners**” shall mean Promoter 1 and Abhishek;

“**Building Completion Certificate**” shall mean the building completion certificate issued by MIDC, in accordance with the applicable MIDC policies and development control regulations, certifying completion of the structure(s) proposed to be constructed on the Company Land;

“**Business**” shall mean the business of: (i) owning Leasehold Interest in the Company Land; and (ii) developing, constructing, operating, leasing and managing the Project;

“**Business Days**” shall mean (i) days (other than Saturday or Sunday) on which banks are generally open for operation in Singapore, Cayman Islands, Mumbai and Nagpur for the purpose of Clause 4.2, and (ii) days (other than Saturday or Sunday) on which banks are generally open for operation in Singapore, Mumbai and Nagpur, for all other purposes;

“**Charter Documents**” shall mean, with respect to a Person, the articles of association and memorandum of association, or similar organizational or incorporation documents, of such Person;

"**Claim**" shall have the meaning ascribed to it in Clause 7.1;

"**Company Board**" shall mean the board of directors of the Company in office at the relevant time;

"**Company Representations**" shall mean the representations and warranties set out under Paragraphs 6, 7, 8, 9, 10, 11, 12 and 13 of Part B of **Schedule II;**

"**Closing**" shall mean the completion and fulfillment of the actions set out in Clause 4.2;

"**Closing Date**" shall mean the date on which Closing takes place in accordance with Clause 4;

"**Closing Resolutions**" shall mean the following resolutions passed by the Company Board, approving the following on the Closing Date:

(i) appointment of (a) Sourabh Kishanpuria (DIN: 09320426) and (b) Anurag Bajaj (DIN: 10695054) as nominees of the HIPL on the Company Board as directors;

(ii) approve the resignation of the Resigning Director;

(iii) subject to the approval of the shareholders, approving the amendment of the Articles to include the provisions of the Company Shareholders' Agreement, in form and substance acceptable to HIPL;

(iv) convene an extraordinary general meeting of the members of the Company, at shorter notice, on the Closing Date for (a) approving and adopting the amendment of the Articles to include the provisions of the Company Shareholders' Agreement, in form and substance acceptable to HIPL; and (b) approving the appointment of the nominees of the HIPL on the Company Board as directors.

(v) approve granting of such limited authorization as deemed necessary by the Company Board, to Promoter 1 in relation to and in connection with conducting the day-to-day operations of the Company in accordance with the Company Shareholders' Agreement;

(vi) allotment of the Company OCDs to VCPL;

(vii) updates to the register of debentures to reflect the transactions contemplated under this Agreement;

(viii) updates to the statutory registers, as necessary, for the transactions contemplated under this Agreement; and

(ix) the filing of necessary forms with jurisdictional Registrar of Companies;

"**Company Bank Account**" means the bank account of the Company, the details of which shall be intimated in writing by the Company to VCPL prior to the Closing Date;

"**Company Land**" shall mean the land parcel(s) described in **Schedule VI**;

"**Company OCDs**" shall mean 2,05,88,760 (Two Crore Five Lakhs Eighty Eight Thousand Seven Hundred and Sixty) optionally convertible debentures of the Company having terms as set out in **Schedule VIII;**

"**Company Securities**" shall mean any class of securities issued by the Company and shall include equity shares, preference shares, debentures, any other debt instruments, options, warrants, convertible shares, convertible bonds, debt securities or other securities that are convertible into, or exercisable or exchangeable for equity shares, which for the avoidance of doubt, shall include Company OCDs;

"**Company Shareholders' Agreement**" shall mean the shareholders' agreement of even date executed between the Company, VCPL, Promoters and HIPL;

"**Conditions Precedent**" shall have the meaning ascribed to it in Clause 3.1;

"**Conditions Precedent Satisfaction Letter**" shall have the meaning ascribed to it in Clause 3.3;

"**Consents**" shall mean any approval, consent, ratification, waiver, notice or other authorization of or from or to any Third Party, including banks and financial institutions (other than a Governmental Approval) that may be required for (i) the execution of this Agreement; and (ii) the consummation of the transactions contemplated under this Agreement;

"**Contract**" shall mean, with respect to a Person, any agreement, contract, deed, subcontract, lease, instrument, note or binding commitment or undertaking of any nature, whether express or implied;

"**Control**" (including with correlative meaning, the terms "**Controlled by**", "**Controlling**" and "**under common Control with**") shall mean, with respect to a Person, the acquisition or control, directly or indirectly, of more than 50% (fifty per cent) of the voting rights or of the issued share capital of such Person or the right to appoint and/or remove all or the majority of the members of the board of directors or other governing body of such Person, the power to direct or cause the direction of the management, to exercise significant influence on the management or policies of such Person, whether obtained directly or indirectly, and whether obtained by ownership of share capital, the possession of voting rights, through Contract or otherwise;

"**De-Minimis Amount**" shall have the meaning ascribed to it in Paragraph 1 of **Schedule III**;

"**Dispute**" shall have the meaning ascribed to it in Clause 8.1;

"**Encumbrance**" shall mean:

(i) any mortgage, charge (whether fixed or floating), pledge, equitable interest, lien, hypothecation, assignment, deed of trust, title retention, security interest, encumbrance of any kind securing or conferring any priority of payment in respect of any obligation of any Person;

(ii) any proxy, power of attorney, voting trust, interest, option, right of other Persons, right of set off, right of first offer, right of refusal, Transfer restriction or any other right similar to the foregoing in favour of any Person;

(iii) any adverse claim as to title, possession or use, conditional sale contract, co-sale contract, trust or other title exception of whatsoever nature;

(iv) any other commitment, restriction, limitation or encumbrance of any kind or nature whatsoever including restriction on use, restrictions on voting rights, restrictions on Transfer (including negative liens, non-disposal undertakings/covenants), restrictions on receipt of income or restrictions on exercise of any other attribute of ownership; and

(v) a Contract, whether conditional or otherwise, to give or refrain from giving effect to any of the foregoing;

and the terms "**Encumber**" and "**Encumbering**" shall be construed accordingly;

"**Environmental Law**" shall mean any applicable Law relating to the environment, pollution of the environment, health or safety or hazardous substances, which directly or indirectly applies to or affects the Company or Company Land;

"**Equity Shares**" shall mean the equity shares of the Company, each having a face value of Rs. 10/- (Rupees Ten only);

"**ERISA**" shall have the meaning ascribed to it in Clause 5.4;

"**Exemption Certificate"** shall mean the certificate dated November 13, 2025, bearing reference no. USN/Malodho-2024/Mu.Shu.Ma.Pr./30 Acre/XSIO LP/2025/C-10132 issued by Industries Department, Government of Maharashtra;

"**Existing Title Representations**" shall mean the representations and warranties set out in Paragraph 10 of Part B of **Schedule II**;

"**Financial Indebtedness**" shall mean any obligation for the payment or repayment of money for or in respect of:

(i) moneys borrowed together with applicable interest, fees and/or other charges payable in connection with such borrowings;

(ii) any amount raised pursuant to the issuance of debentures, redeemable notes or securities, including redeemable shares, redeemable preference shares, loan stock or any similar instrument, or other securities which are expressed to be redeemable;

(iii) any amount raised by acceptance under any acceptance credit, bill acceptance or bill endorsement facility or dematerialized equivalent;

(iv) the amount of any liability in respect of any lease or hire purchase contract which would, in accordance with Accounting Principles, be treated as a finance or capital lease;

(v) any guarantee, indemnity or any other contingent liability (including commitments under any comfort letters or letters of credit);

(vi) any derivative transaction entered into in connection with protection against or to benefit from fluctuation in any rate or price including any credit support arrangement in respect thereof (and, when calculating the value of any derivative transaction, only the marked to market value shall be taken into account);

(vii) receivable sold or discounted which has the effect of a future financial obligation of a Person or its subsidiary;

(viii) any amount raised or payable under any other transaction (including any forward sale or purchase agreement) having the effect of a borrowing under Accounting

Principles, including any obligation of such Person to pay in relation to any call or put option relating to any interest owned by a party in the Company; or

(ix) amount of any liability in respect of any guarantee or indemnity for any of the items referred to in sub-clauses (i) to (viii) above;

"**Financial Statements**" shall mean the balance sheets, profit and loss account statements, and cash flow statements (audited or unaudited, as the case may be) of the Company together with notes thereto;

"**FSI**" shall mean floor space index as determined under applicable Laws;

"**Fully Diluted Basis**" shall mean that the calculation is to be made assuming that all outstanding Company Securities (whether or not by their terms then currently convertible, exercisable or exchangeable into Equity Shares), and any outstanding commitments to issue Equity Shares at a future date (whether or not due to the occurrence of an event or otherwise), have been so converted, exercised or exchanged or that have the effect of conversion, into Equity Shares;

"**Foreign Exchange Laws**" shall mean the Foreign Exchange Management Act, 1999, the rules and regulations framed thereunder, the circulars and press notes issued by the Department for Promotion of Industry and Internal Trade, Reserve Bank of India in relation to such act, rules and regulations, and the consolidated foreign direct investment policy issued by the Government of India, as may be amended, modified, supplemented or re-enacted from time to time;

"**Fundamental Representations**" shall mean the representations and warranties set out under Part A and Paragraphs 1, 2, 3, 4 and 5 of Part B of **Schedule II**;

"**GoM Offer Letter**" shall have the meaning ascribed to it in Paragraph 10(iv) of Part B of **Schedule II**;

"**GoM Letters**" shall have the meaning ascribed to it in Paragraph 10(iv) of Part B of **Schedule II**;

"**Government Official**" shall mean (i) an officer, agent, or employee of a government or government-owned enterprise (or any agency, department or instrumentality thereof) or political party or any Public International Organization, or (ii) a candidate for government or political office;

"**Governmental Approval**" shall mean any permission, approval, consent, license, permit, order, decree, authorization, registration, filing, notification, exemption or ruling to or from or with any Governmental Authority;

"**Governmental Authority**" shall mean any nation or government or any province, state or any other political subdivision thereof, any entity, authority or body exercising executive, legislative, judicial, regulatory, statutory or administrative functions of or pertaining to government, including any government authority, agency, department, board, commission or instrumentality, of any other jurisdiction in which a party to this Agreement is resident, any court, tribunal or arbitrator and any securities exchange or body or authority regulating such securities exchange;

"**HIPL Representations**" shall mean the representations and warranties set out under Part C of **Schedule II**;

"**Improper Payment**" shall mean any bribe, improper rebate, payoff, kickback, or any other item of value provided with the intent to obtain or secure an undue business advantage;

"**Indemnified Persons**" shall mean, each of, HIPL, Blackstone Advisors India Private Limited, Blackstone Inc., Blackstone Singapore Pte. Ltd, The Blackstone Group (HK) Limited, BREP Asia II EIP Holding (NQ) Pte. Ltd, BREP Asia II Holdings IV Pte. Limited (Holdco), BREP Asia II SBS EIP Holding (NQ) Limited, BREP IX SBS EIP Holding (NQ) Limited and VCPL, and each of their respective directors, officers, employees and agents;

"**Indemnification Notice**" shall have the meaning ascribed to it in Clause 7.2 (i);

"**Indemnifying Persons**" shall mean the Promoters jointly and severally;

"**Information**" shall have the meaning ascribed to it in Clause 9.2;

"**INR**" or "**Rs**." shall mean the lawful currency of India;

"**IT Act**" shall mean the Income Tax Act, 1961 and/or Income Tax Act, 2025 (as applicable) as may be amended, modified, supplemented or re-enacted thereof from time to time;

"**Knowledge of the Promoters**" shall mean (i) the actual knowledge of Promoter 1, Abhishek, the board of directors of Promoter 2 and the Company Board prior to Closing Date; and (ii) the knowledge, information, or awareness that Promoter 1, Prior Shareholder 1, Prior Shareholder 2, Abhishek, other directors of Promoter 2, the Company Board prior to Closing Date would have had assuming they had made reasonable, due and careful enquiries;

"**Land Title Representations**" shall collectively mean the Existing Title Representations and ATL Date Title Representations;

"**Law**" shall mean any statute, law, regulation, ordinance, code, rule, judgment, notification, rule of common law, Order, decree, bye-law, Governmental Approval, directive, guideline, requirement or other governmental restriction, or any similar form of decision of, or determination by, or any interpretation, policy or administration, each having the force of law issued by any Governmental Authority having jurisdiction over the matter in question, in each case, whether in effect as of the Execution Date or thereafter;

"**Lease Deed**" shall mean the duly stamped, registered and executed 'Lease Deed' which shall be entered into between MIDC and the Company, in a form and in substance satisfactory to HIPL, and, and under which MIDC shall grant lease of the Company Land;

"**Leasehold Interest**" shall mean the leasehold right, title and interest of the Company in the Company Land;

"**Liabilities**" shall mean with respect to a Person, all Financial Indebtedness and all other liabilities of such Person, including any liabilities towards trade creditors, relating to Taxes, book overdrafts, customer deposits and provisions for gratuity or leave encashment or fringe benefit Taxes or statutory dues;

"**Litigation**" shall mean suits, civil and criminal actions, arbitration proceedings, legal notices, disputes, writ petitions and all other legal proceedings, or written claims of any kind, pending, whether before any court, judicial or quasi-judicial or regulatory authority, tribunal, Governmental Authority or any arbitrator;

"**Long Stop Date 1**" shall have the meaning ascribed to it in Clause 3.1;

"**Long Stop Date 2**" shall have the meaning ascribed to it in Clause 4.4;

"**Loss**" or "**Losses**" shall mean any and all direct losses, liabilities (including payment of Taxes), claims, demands, actions, suits, judgments, awards, fines, settlements, damages, charges, reasonable costs and out-of-pocket expenses (including reasonable attorneys' fees and accountants' fees), interest and penalties, loss of revenue or profits and in each case whether or not resulting from any Third Party Claim. It is hereby agreed and acknowledged that "Loss" shall not include any remote, indirect or unforeseeable losses;

"**Material Adverse Effect**" shall mean any event, occurrence or fact, or series of events, occurrences or facts, that individually or in the aggregate, has had or would reasonably be expected to have a material adverse effect on any of the following:

(i) the validity or enforceability of this Agreement or any other Transaction Document, or the rights or remedies of HIPL hereunder or thereunder;

(ii) the Company Land, or financial condition of the Company;

(iii) the ability of VCPL, or Promoters, or the Company to consummate the transactions contemplated hereby or perform their respective material obligations under this Agreement; or

(iv) the validity/continued survival in full force and effect of any material Consents or material Governmental Approvals required for the Company to carry on the business.

"**Maximum Development Potential**" shall have the meaning ascribed to it in Paragraph 11(iv) of Part B of **Schedule II**;

"**MIDC**" shall mean the Maharashtra Industrial Development Corporation;

"**MIDC Allotment Order**" shall mean an allotment order dated October 28, 2025 issued by MIDC in favour of the Company sanctioning the allotment of the Company Land as a single consolidated plot for setting up an industrial unit for manufacturing of industrial purpose and logistics park;

"**MIDC Comfort Letter 1"** shall have the meaning ascribed to it in Paragraph 10(iv) of Part B of **Schedule II**;

"MIDC Comfort Letter 2" shall have the meaning ascribed to it in Paragraph 10(iv) of Part B of **Schedule II**;

"**MIDC Offer Letter**" shall have the meaning ascribed to it in Paragraph 10(iv) of Part B of **Schedule II**;

"**MIDC Letters**" shall have the meaning ascribed to it in Paragraph 10(iv) of Part B of **Schedule II**;

"**Non-Recourse Persons**" shall have the meaning ascribed to it in Clause 12.14(iii);

"**OFAC**" shall mean Office of Foreign Assets Control of the U.S. Department of Treasury;

"**Order**" shall mean any order, injunction, judgment, decree, ruling, writ, assessment or award of a court, arbitration body or other Governmental Authority;

“**Original Title Documents**” shall have the meaning ascribed to it in Clause 4.7(ii)(d);

“**Part Payment**” shall have the meaning ascribed to it in Clause 7.2(iv)(b);

“**Part A Conditions Precedents**” shall have the meaning ascribed to it in Clause 3.2;

“**Part B Conditions Precedents**” shall have the meaning ascribed to it in Clause 4.1;

“**Person**” shall mean any natural person, limited or unlimited liability company, corporation, partnership (whether limited or unlimited), proprietorship, Hindu undivided family, trust, union, association, Governmental Authority or any agency or political subdivision thereof or any other entity that may be treated as a legal person under applicable Law;

“**Post-Closing Covenant**” shall have the meaning ascribed to it in Clause 4.4;

“**Pre-Closing Resolutions**” shall mean the (i) resolutions of the board of directors of VCPL, in a form and substance acceptable to HIPL, approving the execution and performance of this Agreement (and other Transaction Documents to which VCPL is a party) by VCPL; (ii) resolutions of the board of directors of Promoter 2, in form and substance acceptable to HIPL, approving the execution and performance of this Agreement (and other Transaction Documents to which Promoter 2 is a party) by Promoter 2; (iii) resolutions of the board of directors of HIPL, approving the execution and performance of this Agreement (and other Transaction Documents to which HIPL is a party) by HIPL; and (iv) resolutions of the Company Board and shareholders of the Company, in form and substance acceptable to HIPL, approving the execution and performance of this Agreement (and other Transaction Documents to which the Company is a party) by the Company.

“Prior Shareholder 1” shall mean Jaahnvi Ashish Agrawal (PAN ENDPA2390R), a prior shareholder of the Company from whom VCPL acquired its Equity Share;

“Prior Shareholder 2” shall mean Kuntal Ashish Agarwal (PAN ABKPT3690E), a prior shareholder of the Company from whom VCPL acquired its Equity Share;

“**Prior Shareholders**” shall mean Prior Shareholder 1 and Prior Shareholder 2, collectively, and “**Prior Shareholder**” shall mean any one of them individually

“**Prohibited Person**” shall mean:

(i) any Person (a) who is convicted in or currently subject to criminal proceedings or any investigation by a Governmental Authority for a crime involving imprisonment of 6 (six) months or more, or any crime involving fraud, corruption, money laundering, or moral turpitude or that is or is being investigated to be an organized crime figure or otherwise involved in organized crime or the financing of terrorism, or (b) who Controls a Person that has been convicted in or is currently subject to criminal proceedings for a crime involving imprisonment of 6 (six) months or more or any crime involving fraud, corruption, money laundering, or moral turpitude or that is or is being investigated to be involved in organized crime or the financing of terrorism; or (c) who is reputed to have substantial business or other affiliations with organized crime figures, the financing of terrorism or other criminal enterprises; and for each of the aforesaid, the information specified therein and the identity of the concerned Person is available in public domain or available from reasonably reliable sources, including any government agencies; or

(ii) any Person with whom transactions are prohibited under; or that is directly Controlled by, any nation, organization or group adjudicated in violation, or under investigation by governmental or reputable internationally recognized agencies or indictment for violation of, any applicable Anti-Corruption Laws, Anti-Money Laundering Laws, Sanctions Laws, or similar regulations, rules, executive orders and government guidance in the United States of America and/or in India (including, without limitation, the reporting, record keeping and compliance requirements of the Bank Secrecy Act, as amended by The International Money Laundering Abatement and Financial Anti-Terrorism Act of 2001, Title III of the USA Patriot Act, and other authorizing statutes in the United States and/or in India, executive orders and regulations administered by the Office of Foreign Assets Control of the United States Department of Treasury);

"**Project**" shall mean the warehouse(s) and associated site common infrastructure to be developed on the Company Land (or any part thereof);

"**Project Architect**" shall mean the municipal liaising architect proposed to be appointed by the Company for the Project;

"**Promoter Loan**" shall mean in the inter-corporate deposit of INR 10,62,125/- (Indian Rupees Ten lakhs Sixty Two Thousand One Hundred and Twenty Five only) availed by the Company from Promoter 2;

"**Promoter Representative**" shall have the meaning ascribed to it in Clause 12.16(i);

"**Public International Organization**" shall mean any of the following organizations: (i) United Nations, International Red Cross, (ii) World Bank, (iii) European Union and its constituent organizations (e.g., European Commission, European Court of Justice), (iv) International Monetary Fund, (v) Asia Development Bank, (vi) European Bank for Reconstruction and Development, (vii) Interpol, (viii) World Health Organization and (ix) World Trade Organization**;**

"**Possession Letter**" shall mean the advance receipt dated November 21, 2025, issued by MIDC to the Company evidencing handover of physical possession of the Company Land (duly issued by an authorized officer or surveyor of MIDC) after actual measurement and demarcation of the Company Land on the site, prior to the execution of the ATL;

"**Related Party**" shall have the meaning ascribed to the term in Companies Act, 2013;

"**Relative**" shall have the meaning as set forth in the Act and shall include the meaning ascribed to it under Accounting Standard 18 prescribed by the Institute of Chartered Accountants of India or any successor accounting standard;

"**Resigning Director**" shall mean Abhishek Mohan Agrawal (DIN: 01812746; PAN: AEEPA9438E);

"**Representations**" shall mean the representations and warranties set out under Part A and Part B of **Schedule II**;

"**ROC**" shall mean Registrar of Companies, Maharashtra;

"**Sale Shares**" shall mean 10,000 (ten thousand) Equity Shares owned by VCPL;

"**Sanctions Laws**" shall mean all the economic or financial sanctions laws, regulations or embargos implemented or enforced by the United States, including the U.S. Economic

Sanctions, the European Union, the United Kingdom (including His Majesty's Treasury), the United Nations, the Reserve Bank of India or any other Governmental Authority to whose jurisdiction VCPL, Promoters, or HIPL are subject;

"**SIAC**" shall have the meaning ascribed to it in Clause 8.1(i);

"**Specific Indemnity Matter**" shall have the meaning ascribed to in Clause 7.1(vii);

"**Tax**" or collectively "**Taxes**" or "**Taxation**" shall mean any and all taxes (direct or indirect) (Indian and where applicable non-Indian), assessments, duties, impositions, liabilities, and other charges in the nature of (or similar to) tax whatsoever by any Governmental Authority, including income tax, fringe benefit tax, sales tax, customs duty, gains, property, sales, license, excise duty, service tax, goods and services tax, capital gains, dividend distribution, payroll, occupation, value added or transfer taxes, governmental charges, fees, levies or assessments or other taxes, levies, fees, stamp duties, statutory gratuity and provident fund payments or other employment benefit plan contributions, withholding obligations and similar charges of any jurisdiction and shall include any interest, fines, and penalties related thereto and, with respect to such taxes, any estimated tax, interest and penalties or additions to tax and interest on such penalties and additions to tax;

"**Termination Completion**" shall have the meaning ascribed to it in Clause 11.3(iv)(b);

"**Termination Notice**" shall have the meaning ascribed to it in Clause 11.3(i);

"**Third Party**" shall mean a Person who is not a party to this Agreement;

"**Third Party Claim**" shall have the meaning ascribed to it in Clause 7.2(i);

"**Threshold Loss**" shall have the meaning ascribed to it in Paragraph 2 of **Schedule III**;

"**Transaction Documents**" shall collectively mean this Agreement, the Company Shareholders' Agreement, and any other document designated as a Transaction Document by the Parties in writing;

"**Transfer**" (including, with correlative meaning, the terms "**Transferred by**", "**Transferring**" and "**Transferability**") shall mean to transfer, sell, assign, Encumber, place in trust (voting or otherwise), exchange, gift or transfer by operation of Law or in any other way, dispose of, whether or not voluntarily and whether directly or indirectly (pursuant to the transfer of an economic or other interest, the creation of a derivative security, operation of Law or otherwise);

"**Tribunal**" shall have the meaning ascribed to it in Clause 8.1(iii);

"**U.S.**" shall mean the United States of America;

"**U.S. Economic Sanctions**" shall mean any sanction administered by the Office of Foreign Assets Control of the United States Treasury, including any "Specially Designated Nationals and Blocked Persons" as prescribed thereunder, the U.S. Department of Commerce and the U.S. Department of State;

"**VCPL Representations**" shall mean the representations and warranties set out under Part D of **Schedule II**; and

"**VCPL SHA**" shall mean the shareholders' agreement executed amongst VCPL, Promoters, and HIPL on June 8, 2022.

1.2 Interpretation

(i) Unless the context of this Agreement otherwise requires:

(a) Words using the singular or plural number also include the plural or singular number, respectively;

(b) Words of any gender are deemed to include the other gender;

(c) Reference to the word "include" (or any derivative thereto) shall be construed without limitation;

(ii) The terms "hereof", "herein", "hereby", "hereto" and derivative or similar words refer to this entire Agreement or specified Clauses of this Agreement, as the case may be;

(iii) The term "Clause", "Schedule" and "Annexure" refers to the specified Clause, Schedule or Annexure, respectively, of this Agreement;

(iv) References in this Agreement to any Law issued by a Governmental Authority or to any provision thereof shall be construed as meaning and including references to:

(a) all statutory instruments or orders made pursuant to a statutory provision and any subordinate legislation made from time to time; and

(b) any statutory provisions of which these statutory provisions are a consolidation, re-enactment or modification as on the Execution Date.

(v) The Recitals, the Schedules and Annexures hereto shall constitute an integral part of this Agreement;

(vi) The index hereto and headings and titles herein are used for convenience of reference only and shall not affect the construction of this Agreement;

(vii) Reference to any document includes an amendment or supplement to, or replacement or novation of, that document, but disregarding any amendment, supplement, replacement or novation made in breach of this Agreement;

(viii) Any word or phrase defined in the body of this Agreement as opposed to being defined in Clause 1.1 above shall have the meaning assigned to it in such definition throughout this Agreement, unless the contrary is expressly stated or the contrary clearly appears from the context;

(ix) When any number of days is prescribed in any document, the same shall be reckoned exclusive of the first and inclusive of the last day unless the last day does not fall on a Business Day, in which case the last day shall be the next succeeding day which is a Business Day;

(x) Time is of essence in the performance of the Parties' respective obligations. If any time period specified herein is extended, such extended time shall also be of essence;

(xi) the expression “agreed form” in relation to any document shall mean the document in such form and substance as agreed between the Promoters and HIPL, and initialled for the purpose of identification by each of them;

(xii) where any reference is made in this Agreement to the obligations of any of the Promoters, it shall be construed that such obligations shall have to be performed jointly and severally the Promoters;

(xiii) No provision of this Agreement shall be interpreted in favour of, or against, any Party by reason of the extent to which such Party or its counsel participated in the drafting hereof. This Agreement has been negotiated and reviewed by the Parties and the Parties have participated jointly in the negotiation and drafting of this Agreement. Accordingly, in the event any ambiguity or a question of intent or interpretation arises, this Agreement will be construed as drafted jointly by the Parties, and no presumption or burden of proof will arise favouring or disfavouring any Party by virtue of the authorship of any provisions of this Agreement..

2. AGREEMENT TO SUBSCRIBE

2.1 Subject to the terms and conditions of this Agreement, VCPL agrees to subscribe to, and the Company agrees to issue to VCPL, the Company OCDs on the Closing Date. The Company OCDs shall be issued on the Closing Date, free and clear of all Encumbrances, together with all rights, title and interests arising therefrom (including all rights and advantages now and hereafter attaching or accruing thereto), such that VCPL, upon completion of the allotment of the Company OCDs receives full legal and beneficial ownership of such portion of the Company OCDs and all rights and benefits relating thereto and arising therefrom, in consideration of the Aggregate Subscription Amount.

2.2 The Aggregate Subscription Amount shall be used by the Company for repayment by the Company of the VCPL Loan in full.

3. CONDITIONS PRECEDENT

3.1 The obligation of VCPL to subscribe to the Company OCDs and pay the Aggregate Subscription Amount in the manner contemplated under this Agreement, shall be conditional upon fulfilment, to the reasonable satisfaction of HIPL (except where the fulfilment of the relevant condition precedent has been deferred or prescribed to be a condition subsequent to Closing, or a waiver has been provided by HIPL in writing in its sole discretion), of each of the conditions precedent as specified in Part A of **Schedule I** (“**Part A Conditions Precedent**”), on or prior to December 15, 2025 or such later date as the Parties may mutually agree in writing or as HIPL may, in its sole discretion, notify in writing (“**Long Stop Date 1**”).

3.2 The Promoters shall procure, at their cost and expense, that each Part A Condition Precedent is satisfied at the earliest and in any case at least 10 (ten) Business Days before the Long Stop Date 1. If any of the Promoters or the Company become aware of any event or circumstance that will or may reasonably be expected to prevent any of the Part A Conditions Precedent from being satisfied, on or prior to the Long Stop Date 1, it shall forthwith notify HIPL in writing of such event or circumstance, and the Promoters and the Company shall take all reasonable actions and steps as may be required to remove or remedy the events/circumstances and complete the relevant Part A Condition Precedent.

3.3 Upon fulfillment of each of the Part A Conditions Precedents (other than the Conditions Precedent that are required to be completed immediately in advance of Closing or at Closing or such Conditions Precedent that have been waived in writing by HIPL), the

Promoters shall deliver to HIPL, a completion certificate in a form annexed to the Agreement as **Schedule V** ("**Conditions Precedent Satisfaction Letter**") and shall, along with the Conditions Precedent Satisfaction Letter, enclose or electronically provide access to all necessary documents evidencing fulfillment of each of the Part A Conditions Precedents; provided that if HIPL disputes the satisfaction of any of the Part A Conditions Precedents pursuant to the delivery of the Conditions Precedent Satisfaction Letter, the Promoters shall procure the satisfaction of such Part A Conditions Precedents as contemplated under this Agreement and reissue the Conditions Precedent Satisfaction Letter.

4. CLOSING

4.1 Subject to the fulfilment or written waiver by HIPL of each Condition Precedent set out in Part B of **Schedule I** (collectively "**Part B Conditions Precedents**") and the fulfillment of each of the Part A Conditions Precedents, the subscription by VCPL of the Company OCDs shall take place within 2 (two) Business Days from the date of delivery of the Conditions Precedent Satisfaction Letter to HIPL by the Promoters, unless the satisfaction of any of the Part A Conditions Precedents is disputed by HIPL prior to the expiry of such period.

4.2 On the Closing Date, the following events shall take place:

(i) Each of the Promoters shall certify in writing that the Representations (except the ATL Date Title Representations) are true and correct as of the Execution Date and the Closing Date, as though made on and as of each such date and that the Promoters have complied with all of their respective obligations and undertakings under this Agreement on or prior to the Closing Date;

(ii) Post completion of the action detailed in Clause 4.2(i), the VCPL shall remit the Aggregate Subscription Amount to the Company Bank Account.

(iii) Simultaneously with the action detailed in Clause 4.2(ii), the Company shall, and the Promoters shall procure that the Company shall:

(a) pass the Closing Resolutions and provide certified copies to HIPL; and

(b) update the statutory registers as applicable, and provide a certified copies of the same to HIPL.

(iv) The Company shall, and VCPL shall procure that the Company shall, pass the resolution (a) approving and adopting the amendment of the Articles to include the provisions of the Company Shareholders' Agreement, in form and substance acceptable to HIPL; and (b) approving the appointment of the nominees of the HIPL on the Company Board as directors, in a duly convened extraordinary general meeting of the shareholders of the Company, on the Closing Date.

4.3 The Parties shall undertake best efforts to complete all actions contemplated by this Agreement to be consummated at Closing simultaneously and on the same day. Without limiting any rights or remedies of HIPL under this Agreement, if any actions specified in Clause 4.2 cannot be completed on the same day due to any reason beyond the reasonable control of the Parties, the Closing shall be deemed to occur on the last day on which all the actions specified in Clause 4.2 are completed.

4.4 Post-Closing Covenants

The Promoters shall jointly and severally undertake necessary steps to complete and shall procure the completion, to HIPL's satisfaction, or waiver by HIPL in writing (in its sole discretion and only to the extent expressly permitted therein), of each of the actions specified in **Schedule X** (each, a "**Post-Closing Covenant**", and collectively, " **Post-Closing Covenants**"), on or prior to the date of expiry of 90 days from the Closing Date or such later date as the Parties may mutually agree in writing or as HIPL may, in its sole discretion, notify in writing ("**Long Stop Date 2**"). The Company shall extend all reasonable cooperation and assistance to the Promoters in undertaking necessary steps to complete the Post-Closing Covenants.

4.5 If any of the Promoters become aware of any event or circumstance that will or may reasonably be expected to prevent any Post-Closing Covenant from being fulfilled on or before Long Stop Date 2, the Promoters shall forthwith notify HIPL in writing of such event or circumstance and the Promoters shall take all reasonable actions and steps as may be required to remove or remedy the events/circumstances and complete the relevant Post-Closing Covenant.

4.6 Interim Covenants

(i) Each of the Promoters covenants in favour of HIPL that during the period between the Execution Date and until the completion of all Post-Closing Covenants in accordance with this Agreement, it shall:

(a) promptly:

(1) supplement or amend the information given to HIPL and/or its representatives pursuant to this Agreement with respect to any matter which comes to the knowledge of any of the Promoters which results in, or is reasonably likely to result in, breach of terms of any of the Representations; and

(2) provide HIPL with (A) timely updates of the status and progress of the satisfaction of the Conditions Precedent and/or fulfilment of Post-Closing Covenants; and (B) notice of any facts, circumstances or events that would reasonably be expected to, individually or in the aggregate, result in a Material Adverse Effect;

provided that, notwithstanding anything contained in this Clause 4.6, unless otherwise agreed between HIPL and the Promoters in writing, no information provided to HIPL subsequent to the Execution Date shall have the effect of amending or qualifying any Representation, or any other term of this Agreement;

(b) ensure that the Company does not undertake any activity other than work for procuring the allotment of the Company Land from MIDC; and

provide HIPL and its employees, representatives, officers, advisors and agents with reasonable access, upon reasonable prior written notice and during normal business hours, to the Company's personnel, books and records, the Company Land and to the authorized representative of the Promoters.

4.7 ATL Execution Date

On the ATL Execution Date, the following events shall take place:

(i) the Promoters shall certify in writing that: (a) all Representations (except Existing Title Representations) are true and correct as of the ATL Execution Date, as though made on and as of such date by references to facts and circumstances then existing on the date on which such Representations are actually being provided; and (b) that the Promoters have complied with their respective obligations and undertakings to be performed up to the ATL Execution Date in accordance with the terms of this Agreement;

(ii) The Promoters shall certify in writing:

(a) the ATL Execution Date, as per the terms of this Agreement;

(b) the completion of the ATL Milestone in accordance with the terms of this Agreement;

(c) the Company is in vacant and peaceful and physical possession of the Company Land and has the license and authority to enter upon the Company Land for building and execution works thereon, as granted by MIDC under the ATL; and

(d) all original documents in relation to the Company Land, including but not limited to the original title deeds and documents listed in **Schedule IX** ("**Original Title Documents**"), are in the Company's possession.

(iii) On the ATL Execution Date, the Promoters shall have caused the completion of the registration of the ATL with the jurisdictional sub-registrar in accordance with the applicable Laws and shall have delivered to HIPL the duly executed, stamped and registered ATL and the Original Title Documents.

5. COVENANTS OF THE PARTIES

5.1 Upon the completion of construction on the Company Land (to the extent of utilization of applicable FSI on the Company Land, for procuring the applicable Building Completion Certificate required for the purpose of execution of the Lease Deed, as per the ATL), the Promoters shall on a best-efforts basis assist the Company in securing the following,

(i) in the name of the Company, the applicable 'Building Completion Certificate' from MIDC within 60 (sixty) days of the Project Architect certifying that (a) the construction on the Company Land (to the extent of utilization of applicable FSI on the Company Land, for procuring the applicable Building Completion Certificate required for the purpose of execution of the Lease Deed, as per the ATL) has been carried out in accordance with the requisite approvals under the ATL and applicable Law, and (b) all conditions for procurement of the aforesaid applicable Building Completion Certificate have been fulfilled by the Company; and

(ii) in the name of the Company, the executed and registered Lease Deed in favour of the Company in respect of the entire the Company Land along with structures constructed, or to be constructed thereon, in each case, to the satisfaction of HIPL.

5.2 The Promoters confirm and covenant in favor of HIPL that, they shall not directly or indirectly, through a related Person, Affiliate or otherwise, speak or discuss, enter into any contract, understanding or term sheet or any other agreement of like nature (whether or not such contract, understanding, term sheet or agreement is absolute, revocable, contingent, conditional, oral, written, binding or otherwise), or solicit with any Third Party, for a potential direct or indirect Transfer of, or creation of Encumbrance over, any rights or interest, of any nature whatsoever, in the Company Land or any part thereto.

5.3 The Promoters shall not and shall ensure that the Beneficial Owners shall not take any action that would constitute a violation, or implicate HIPL, VCPL and/or the Company in a violation, of Anti-Corruption Laws, Anti-Money Laundering Laws, or Sanctions Laws. The Promoters shall immediately notify HIPL of any violation or potential violation of Anti-Corruption Laws, Anti-Money Laundering Laws or Sanctions Laws by: (i) any of them; (ii) any shareholders, officers, directors, or employees of Promoter 2; (iii) VCPL; (iv) the Company; and/or (v) any agents / representatives of any of the foregoing engaged in connection with any matter relating to VCPL, the Company and/or the Company Land.

5.4 No portion of the assets used by the Promoters to acquire or to hold any Company Securities, constitutes or will constitute the assets, of any (i) "employee benefit plan" within the meaning of Section 3(3) of the Employee Retirement Income Security Act of 1974, as amended ("**ERISA**"), whether or not subject to ERISA, (ii) "plan" within the meaning of Section 4975 of the IRC, whether or not subject to Section 4975 of the IRC, (iii) a plan, fund or other similar program that is established or maintained outside the United States which provides for retirement income, a deferral of income in contemplation of retirement or payments to be made upon termination of employment or (iv) entity whose underlying assets are considered to include the assets of any of the foregoing described in sub-clauses (i), (ii) or (iii), pursuant to ERISA or otherwise.

5.5 The Promoters shall not and shall ensure that the Persons identified in Clause 5.4 hereinabove make, or promise to make, any Improper Payments (i) to or for the use or benefit of any Government Official; (ii) to any other Person either for an advance or reimbursement, with knowledge or reason to know that any part of such Improper Payment will be directly or indirectly given or paid by such other Person, or will reimburse such other Person for Improper Payments previously made, to any Government Official; or (iii) to any other Person or entity, to obtain or keep business or to secure some other improper advantage, or otherwise in violation of Anti-Corruption Laws.

5.6 Each of the Promoters and the Company covenant and undertake that, in terms of the applicable Anti-Corruption Laws, Anti-Money Laundering Laws and Sanctions Laws,

(i) neither any of the Promoters, nor the Company, nor any of the Company's directors, employees or agents (in each case, acting in accordance with any act or instruction of the Promoters and acting in relation to the business of the Company) will make, promise to make, or cause to be made any Improper Payments, directly or indirectly, (a) to or for the use or benefit of any Government Official, (b) to any other person either for an advance or reimbursement, if it knows or has reason to know that any part of such payment will be directly or indirectly given or paid by such other person, or will reimburse such other person for payments previously made, to any Government Official, (c) to any other person or entity to obtain or keep business or to secure some other improper business advantage, or (d) otherwise in violation of applicable Anti-Corruption Laws; provided that the Promoters shall not be responsible for these aforesaid obligations or undertakings in respect of the Company on and from the date they cease to be responsible for the day-to-day management of the Company.

(ii) The operations of the Company will continue to be conducted at all times in compliance with Anti-Money Laundering Laws to the extent applicable to the

Company as long as the Promoters are authorized and responsible for the day-to-day management of the Company.

(iii) No monies infused into the Company shall be derived from the proceeds of, or will be in furtherance of, criminal activities including but not limited to the financing of terrorism or otherwise in violation of Anti-Money Laundering Laws.

(iv) The Company and the Promoters do not and shall ensure that they and their respective Representatives (as applicable) shall not, engage in business activities with or for the benefit of any Sanctioned Jurisdiction, Sanctioned Person, or otherwise in violation of Sanctions Laws. Neither the Promoters nor the Company shall use any funds received pursuant to this agreement in violation of Sanctions Laws.

(v) The Promoters and the Company shall immediately notify HIPL of any violation or potential violation of Anti-Corruption Laws, Anti-Money Laundering Laws or Sanctions Laws, by the Promoters, the Company, or their respective Representatives (as applicable) of which they become aware; and the Company shall cooperate with any audit or inquiry by HIPL in relation to same, and shall implement any remedial measures reasonably recommended by HIPL to ensure compliance with Anti-Corruption Laws, Anti-Money Laundering Laws or Sanctions Laws.

5.7 If the Promoters become a Governmental Official or Governmental Authority (as the case may be), then the Promoters shall notify HIPL immediately so that HIPL may, and hereby reserve the right to, take whatever precautions and actions may be appropriate to ensure compliance with applicable Anti-Corruption Laws.

5.8 If any Government Official and/or Governmental Authority (as applicable) becomes associated with, or obtains an interest, whether direct or indirect, in any of the Promoters, the Promoters shall, notify HIPL immediately, so that HIPL may, and hereby reserves the right to, take such precautions and actions that may be reasonably required to ensure compliance with Anti-Corruption Laws.

5.9 HIPL, the Promoters, VCPL and the Company agree that HIPL shall be entitled to appoint and/or nominate the authorised signatories in respect of all bank accounts of the Company, and the Company, VCPL and the Promoters shall take all actions, pass all resolutions and execute all documents as may be necessary to implement and give full effect to the foregoing.

5.10 The Promoters shall, at their sole cost and expense, and without recourse to VCPL, HIPL or the Company, procure that all statutory, regulatory, corporate, secretarial, record-keeping and filing requirements relating to the Company in respect of any period on or prior to the Closing Date (including any delayed, omitted or defective filings or records) are duly made good, regularised and brought into compliance with applicable Law, whenever so required by Law or upon written request by HIPL. The Promoters shall do, or procure the doing of, all such acts, deeds and things, and the execution and filing of all such forms, returns and documents with the relevant authorities, as may be necessary or desirable for this purpose, and shall promptly reimburse the Company for any costs or expenses incurred by the Company in connection with the foregoing. Provided however that costs and expenses set out in Clause 12.11 shall be borne in the manner set out therein.

5.11 The Company shall adopt, and HIPL, the Promoters and VCPL shall procure that the Company adopts, an anti-corruption compliance program which shall include a written anti-corruption policy designed to ensure compliance by the Company's directors, officers, key employees, and agents with applicable Anti-Corruption Laws, and routine and periodic compliance trainings for such individuals, in each case in a form and substance to HIPL's satisfaction.

5.12 The Company shall, within a period of 60 (sixty) days from the Closing Date, credit all Company OCDs in dematerialised form to the dematerialised account of VCPL in compliance with Applicable Law.

5.13 The Company shall, within a period of 30 (thirty) days from the Closing Date, complete the registration under Entity Master and Business User on the Foreign Investment Reporting and Management System portal; and VCPL shall, within a period of 30 (thirty) days from the Closing Date file Form DI (together with all requisite annexures and certifications) with the Reserve Bank of India through its authorised dealer bank in respect of the acquisition of Sale Shares by VCPL, in each case, in compliance with applicable Law.

6. REPRESENTATIONS AND WARRANTIES OF THE PARTIES

6.1 The Promoters, jointly and severally represent and warrant to HIPL and VCPL that each of the Representations: is true and correct as of the Execution Date and shall (unless expressly stated otherwise in the Representations) be deemed to be repeated on each of, the Closing Date and the ATL Execution Date, in each case, by reference to the facts and circumstances then existing as if references in such Representations to the Execution Date were references to the date on which the Representations are actually being provided (save and except the (i) Existing Title Representations, which shall be true and correct only as of the Execution Date, and the Closing Date; and (ii) the ATL Date Title Representations which shall be true and correct only as of the ATL Execution Date).

6.2 HIPL represents and warrants to the Promoters that each of HIPL Representations is true and correct as of the Execution Date and the Closing Date, by reference to the facts and circumstances then existing as on the date on which such HIPL Representations is actually being provided.

6.3 VCPL represents and warrants to the Promoters and HIPL that each of the VCPL Representations is true and correct as of the Execution Date and the Closing Date, by reference to the facts and circumstances then existing as on the date on which such VCPL Representations is actually being provided.

6.4 Each of the Representations shall be construed as a separate representation and shall not be limited by the terms of any other representation or warranty or by any other term of this Agreement and in the event and to the extent that any such Representation explicitly provides an exception, exclusion or qualification thereto by reference to a circumstance or fact stated in such Representation, such exception, exclusion and qualification shall be applicable only and limited to such Representation and shall not, and shall in no circumstance be deemed to, apply as an exception, exclusion or qualification to any other Representation unless and to the extent explicitly stated in such other Representation.

6.5 Except as provided in the Representations, the Promoters do not make any representation or warranty as to the accuracy of any forecasts, estimates, projections, statements of opinion, if any, provided to HIPL or to its or their advisors on or before the date of this Agreement. For avoidance of doubt, it is hereby clarified that no such forecast, estimate, projection or statement of opinion, except as provided in the Representations, may form the basis of any Claims by HIPL against the Promoters.

6.6 Except for the Representations, none of the Promoters have made or make any other express or implied representation or warranty, either written or oral, on behalf of themselves or VCPL.

7. INDEMNITY

7.1 On and from completion of Closing on the Closing Date, the Indemnifying Persons, to the full extent of each Loss and subject to the limitations of liability set out in **Schedule III** *(Limitations on Liability),* agree to indemnify, defend and hold harmless Indemnified Persons from and against any and all Losses, suffered or incurred by any of the Indemnified Persons and which arise out of, or result from or are connected with:

(i) any breach of or inaccuracy of any of the Representations (as of the Execution Date, Closing Date and/or ATL Execution Date);

(ii) fraud and/or fraudulent misrepresentation by any of the Promoters in relation to the transactions contemplated under this Agreement;

(iii) any material breach of covenant or undertaking by the Promoters contained in this Agreement (other than covenants set out in Clause 5.1); provided that for the purposes of determining whether or not the Indemnified Persons are entitled to indemnity pursuant to this Clause 7.1(iii), the term 'material' used in this Clause 7.1(iii) shall be disregarded if the Loss being claimed by HIPL is in excess of the De-Minimis Amount;

(iv) any and all costs and expenses incurred by VCPL and/or the Company for the fulfillment of all of the Post-Closing Covenants in excess of the ATL Milestone Cap;

(v) Tax liability of the Company that arises out of, or results from, or relates to: (a) the period prior to the ATL Execution Date; and/or (b) any action or omission by the Company prior to the ATL Execution Date; and/or

(vi) any and all liabilities, obligations, dues, claims, demands, actions, penalties, fines, interest, costs and expenses of whatever nature of or against the Company which relate to, arise from or are attributable to any period on or prior to the Closing Date and whether known or unknown, disclosed or undisclosed, actual, accrued, contingent or otherwise.

Claims under Clause 7.1 shall be collectively referred to as "**Claims**" and individually as "**Claim**".

7.2 Indemnification Procedures

(i) Any Claim for indemnity pursuant to this Agreement shall be made by the Indemnified Persons by notice in writing to the Indemnifying Persons ("**Indemnification Notice**"). The Indemnification Notice issued by the Indemnified Persons shall also contain a reasonable description of the Losses based on the information available to the Indemnified Persons, all the material facts, matters, circumstances and documents that gave rise to the Loss in respect of which indemnification is being sought. If an Indemnified Person becomes aware of any actual or potential claim, legal action, proceeding, suit, prosecution, mediation or arbitration by a Third Party against any Indemnified Person for which indemnification may be sought from the Indemnifying Persons under this Clause 7.2(i) ("**Third Party Claim**"), the Indemnified Person shall notify the

Indemnifying Persons of such Third Party Claim within a period of 45 (Forty Five) days from the date of receipt of a written notice with respect to such Third Party Claim. The notice in respect of any Third Party Claim shall contain a reasonable description of all the material facts, matters, circumstances known to the relevant Indemnified Person, including, if quantifiable at that stage, an estimation of Losses that the Indemnified Person may suffer on account of the relevant Third Party Claim. Copies of any documents available with the Indemnified Person in relation to the Third Party Claim, including a copy of such Third Party Claim, if any, shall be annexed to the written notice being provided to the Indemnifying Persons. The conduct of proceedings, defence, negotiations, compromise, appeal etc. with respect to any Third Party Claims against VCPL or the Company shall be undertaken in accordance with Clause 7.2(vii) below.

(ii) All undisputed indemnity payments shall be made by the Indemnifying Persons to the Indemnified Persons in cash and in immediately available funds or such other manner agreed between the Indemnifying Persons and the Indemnified Persons within 30 (thirty) days of receipt of the Indemnification Notice by the Indemnifying Persons or such earlier period in which any payment is due and payable to a Third Party, including any Governmental Authority. However, in the event the Indemnifying Persons disputes the Loss or their obligation to indemnify all or any part of their obligation to indemnify for the relevant Loss under the Indemnification Notice, such dispute shall be settled in accordance with Clause 8 and the obligation of the Indemnifying Persons to indemnify the Indemnified Person shall arise immediately upon such dispute being resolved in accordance with Clause 8 and an award and/or Order being passed in accordance thereof upholding indemnification obligations of the Indemnifying Persons.

(iii) Any payment to be made pursuant to a Third Party Claim (unless disputed) or deposit to be made with a Governmental Authority in connection with any Third Party Claim, shall, be made directly by the Indemnifying Persons to the relevant Third Party or Governmental Authority, within the time period prescribed, with intimation to the Indemnified Persons in writing.

(iv) If the Indemnifying Persons pays an amount pursuant to any indemnification obligation under this Clause 7 in relation to any Loss and the Indemnified Person(s) subsequently recover(s) amounts from a Third Party which is referable to the subject matter of such Loss (including pursuant to an insurance claim), then the following process shall be followed; provided that after following such process the Indemnified Persons remain fully compensated in respect of the original Loss incurred:

(a) Where the Indemnifying Persons pays an amount in full discharge of a Loss and if any aforesaid amount is recovered by the Indemnified Person(s) from a Third Party, the Indemnified Person(s) shall promptly and in any event within 30 (thirty) days, pay the Indemnifying Persons, an amount equal to the sum recovered from the Third Party by the Indemnified Person(s), less any reasonable costs, expenses and Taxes incurred by (or on account of) it in recovering such amounts from the concerned Third Party; or

(b) Where the Indemnifying Persons pays an amount in partial discharge of a Loss ("**Part Payment**"), and the aforesaid amounts recovered by the Indemnified Person(s) from the Third Party together with the Part Payment, exceed the Loss, the Indemnified Person(s) shall promptly and in any event within 30 (thirty) days, pay to the Indemnifying Persons, an amount equal to the sum in excess of the Loss, *less* any reasonable costs, expenses and Taxes incurred by (or on account of) the Indemnified Person(s) in recovering such amounts from the concerned Third Party.

(v) Parties agree that where any payment is made by a Third Party to the Indemnified Person(s) in full discharge of a Loss, prior to the Indemnifying Persons discharging such Loss, the Indemnified Person(s) shall have no further claim against the Indemnifying Persons.

(vi) If any Claim (including a Third Party Claim) relates to breach of any Land Title Representations or matters related to the Company Land, the Indemnifying Persons shall have the right, at its sole cost, to initiate an independent action against the predecessors in title of the Company Land in respect of such Claim (through the Company under the terms of the ATL), and VCPL (in its capacity as a shareholder of the Company) and HIPL (in its capacity as a shareholder of VCPL) shall extend all such cooperation, support and assistance as may be reasonably required by VCPL, to in pursue the Company's indemnification rights under the ATL. Notwithstanding anything to the contrary set out herein, the obligations of the Indemnifying Persons set out in this Agreement shall not in any manner be contingent upon, or subject to recovering any amounts from such predecessors in title of the Company Land under the terms of the ATL.

(vii) **Conduct of Third Party Claims**

(a) Subject only to the provisions of Clause 7.2(vii)(c), on receipt of a Third Party Claim against VCPL or the Company, VCPL shall assume control of any proceedings, defense, or negotiations in respect of such Third Party Claim and shall as soon as reasonably practicable give written notice of the Third Party Claim against VCPL or the Company to the Promoters.

(b) VCPL or the Company (as applicable) shall, and the Parties shall ensure that VCPL or the Company (as applicable) shall, in connection with the defense and control of a Third Party Claim against VCPL or the Company (as applicable):

(1) handle and control such proceedings and/or litigations in good faith and consult the Promoters and HIPL on material actions to be taken in respect of defence of such Third Party Claim;

(2) VCPL shall appoint legal advisors and other consultants in connection with the relevant Third Party Claim (and, where the Third Party Claim is against the Company, VCPL shall procure that the Company appoints such advisors/consultants) against VCPL or the Company in consultation with Promoters and HIPL; and

(3) keep the Promoters, and HIPL reasonably informed about the status of matters including by providing such information in the possession of VCPL and/or, where applicable, the Company in relation to the Third Party Claim against VCPL or the Company (including details of costs and expenses incurred by VCPL and/or, where applicable, the Company (along with documentary evidence) in defending the relevant Third Party Claim) as may be reasonably requested by the Promoters, or HIPL.

(c) Notwithstanding anything to the contrary contained in this Agreement, on or prior to the expiry of a period of 45 (forty five) days of issuance of a notice of Third Party Claim against VCPL or the Company to the Indemnifying Persons, HIPL shall be entitled to require the Promoters to assume control of the defence of such Third Party Claim by issuing a written notice to the Promoters. In such a case, in connection with the defense and control of such Third Party Claim:

(1) The Promoters shall: (x) handle and control such proceedings/litigations in good faith and consult HIPL and VCPL on all material actions to be taken in respect of defense of such Third Party Claim against VCPL or the Company; and (y) keep HIPL and VCPL reasonably informed about the status of, including by providing such information in the possession of the Promoters in relation to the Third Party Claim against VCPL or the Company as may be reasonably requested by HIPL or VCPL;

(2) the Promoters shall appoint legal advisors and other consultants in connection with the relevant Third Party Claim against VCPL or the Company in consultation with HIPL and VCPL (and/or, where applicable, the Company) shall incur and pay legal fees and other consultancy expenses in connection thereto; and

(3) where any settlement/compromise/consent to the entry of any judgment in relation to a Third Party Claim against VCPL or the Company is proposed, then, the Promoters shall not settle such Third Party Claim without the prior written consent of HIPL and VCPL (which consent shall not be withheld unreasonably).

(d) HIPL, VCPL, the Company and the Promoters shall cooperate with one another in all reasonable respects in connection with the defence of Third Party Claim against VCPL or the Company including making available relevant documents and records related to the subject matter of such Third Party Claim against VCPL or the Company.

(e) Notwithstanding anything contained in this Clause 7.2 (vii), VCPL or the Company shall not, without the prior written consent of HIPL and Promoters (which shall not be unreasonably withheld), settle, compromise, agree to any compromise or settlement of any Third Party Claim against VCPL or the Company or consent to the entry of any judgment in any pending or threatened Third Party Claim against VCPL or the Company in respect of which indemnification may be sought hereunder (whether or not the Indemnifying Party is a party to such action).

(viii) The obligation of the Indemnifying Persons to indemnify the Indemnified Persons pursuant to this Clause 7 shall arise in accordance with the timeline set out in Clause 7.2(i) and Clause 7.2(ii) above unless such timelines have been extended by HIPL or the Indemnified Person(s) in their sole discretion. The failure of the Indemnified Persons to timely notify the Indemnifying Persons of a Claim or a Third Party Claim shall not relieve the Indemnifying Persons of any indemnification responsibility under this Clause 7 except to the extent that there has been an additional Loss or increase in the Loss by virtue of the failure to timely notify the Claim in accordance with the provisions of this Agreement by the Indemnified Persons, in which case, the liability of the Indemnifying Persons shall be limited to such amount of Loss excluding any additional and/or increased Loss that has arisen solely due to such failure to timely notify.

(ix) To the extent the payment to any Indemnified Person of any amounts pursuant to the provisions of this Agreement shall be subject to receipt of any Governmental Approval, in each case the Indemnified Persons shall obtain all such Governmental Approvals and shall make all applications and take all steps required to obtain the same, and the Indemnifying Persons (as the case may be), shall cooperate with the Indemnified Persons to obtain such Governmental Approvals. Where a Governmental Approval is required, the Indemnified Persons may, at their option, assign its indemnity rights under this Clause 7 to an Affiliate, if the Indemnifying Persons can, subject to applicable Laws, indemnify such Affiliate without requiring any Governmental Approval.

(x) The obligation of the Indemnifying Persons to indemnify the Indemnified Persons pursuant to this Clause 7 shall arise irrespective of any alternate rights or remedies that may be available to the Indemnified Persons against any Third Party in relation to such Loss.

(xi) All sums payable to the Indemnified Persons by the Indemnifying Persons under this Agreement shall be paid without set-off or counterclaim and free and clear of all deductions or withholdings whatsoever, other than any withholding Tax required to be withheld and/or deducted in accordance with applicable Law.

7.3 If the Indemnifying Persons make any indemnity payment in respect of a Loss to the Indemnified Persons pursuant to this Clause 7, which is subject to any withholding Tax or Tax in the hands of the Indemnified Persons, the Indemnifying Persons shall pay such additional amounts so as to ensure that the net amount received by the Indemnified Persons is equal to the full amount payable by the Indemnifying Persons to the Indemnified Persons, and the Indemnified Persons receive the amount that they would have been entitled to receive prior to such Taxes.

7.4 A Loss suffered by VCPL and / or by the Company (being a wholly-owned subsidiary of VCPL) shall be deemed to be a Loss to HIPL in proportion to its shareholding in VCPL on a Fully Diluted Basis; for the avoidance of doubt, any Loss suffered by the Company shall be treated, on a look-through basis, as a Loss suffered by VCPL for the purposes of this Agreement. HIPL shall have the discretion to require the Indemnifying Persons to make indemnity payments due to HIPL to the account of HIPL and/or to the account of VCPL and/or to the account of the Company (or as HIPL may otherwise direct).

7.5 The indemnification rights of the Indemnified Persons pursuant to this Clause 7 shall be notwithstanding any investigation conducted before or after the Closing Date, and notwithstanding any actual or implied knowledge or notice of any facts or circumstances, including knowledge which the Indemnified Persons may have as a result of such investigation.

7.6 The indemnification rights under this Agreement shall, on and from and after Closing Date, be the sole and exclusive monetary remedy available to the Indemnified Persons against the Promoters in the case of any Loss incurred or suffered by such Indemnified Persons for matters indemnifiable pursuant to this Clause 7.

7.7 The Indemnifying Persons shall take commercially reasonable efforts to ensure that it, at all times maintain adequate assets in order to meet its: indemnification obligations under the Transaction Documents;

7.8 Notwithstanding any agreement or understanding to the contrary, on and from the Execution Date, the Promoters hereby irrevocably and unconditionally (and shall procure that their respective Affiliates irrevocably and unconditionally):

(i) waive, release and forever discharge the Company and its directors, officers and employees, from any and all claims, demands, actions, rights, entitlements or causes of action whatsoever, whether known or unknown, asserted or unasserted, present, future, prospective, accrued, unaccrued, contingent or otherwise, which any Promoter, or any of their Affiliates has or may have against any of them as at the Execution Date and/or Closing Date, in relation to any period up to and including the Closing Date; and

(ii) waive any and all recourse against the Company and agree that none of the Promoters or any of their Affiliates shall have any claim or remedy against the Company, whether by way of restitution or under contract, law, tort or any other basis whatsoever, in connection with any Losses which have been, or are required to be, indemnified by any Indemnifying Person under the terms of this Clause 7 or any other Transaction Document.

7.9 Limitations on Liability

Notwithstanding anything contained in this Agreement, the total liability of the Indemnifying Persons under this Clause 7 and this Agreement shall be subject to the principles and limitations as set out in **Schedule III** (*Limitations on Liability*).

8. DISPUTE RESOLUTION

8.1 If any claim, dispute or difference arise between all or any of the Parties hereto, in connection with the validity, interpretation, implementation or alleged breach of any provision of this Agreement or regarding any question, including the question as to whether the termination of this Agreement by any Party hereto has been legitimate ("**Dispute**"), such Dispute shall be referred, at the request in writing of any Party to the Dispute to final and binding arbitration. In the event of such arbitration:

(i) The arbitration shall be in accordance with the Arbitration Rules of the Singapore International Arbitration Centre ("**SIAC**"), in force at the relevant time (which rules are deemed to be incorporated into this Agreement by reference);

(ii) All proceedings of such arbitration shall be in the English language. The venue of the arbitration shall be Singapore, which shall also be the seat of the arbitration;

(iii) The arbitration shall be conducted before a tribunal ("**Tribunal**") which consists of 3 (three) arbitrators. The claimant(s) shall nominate 1 (one) arbitrator in the notice of arbitration. The respondent(s) shall nominate 1 (one) arbitrator in the response to the notice of arbitration. The two party-nominated arbitrators shall have 20 (twenty) Business Days to agree, in consultation with the parties to the arbitration, upon the nomination of a 3rd (third) arbitrator to act as presiding arbitrator of the tribunal, barring which the President of SIAC shall select the 3rd (third) arbitrator (or any arbitrator that claimant(s) or respondent(s) fail to nominate in accordance with the foregoing);

(iv) Arbitration awards shall be reasoned awards and shall be final and binding on the disputing Parties and shall be subject to forced execution in any court of competent jurisdiction. The arbitration award rendered in accordance with this Clause 8 shall be enforceable by any court of competent jurisdiction, including (if and to the extent determined by the arbitrator) by injunctive relief or order for specific performance;

(v) All claims and counterclaims shall, to the extent such claims or counterclaims are known at the time any arbitration is commenced and relate to issues which are substantially the same as or connected with issues raised in a Dispute which has already been referred to arbitration under this Agreement or any other Transaction Documents, be consolidated and determined in the same arbitration proceeding;

(vi) Deposits to cover the costs of arbitration shall be shared equally by the parties thereto. The award rendered by the arbitrator shall, in addition to dealing with the merits of the case, fix the costs of the arbitration and decide which of the parties thereto shall bear such costs or in what proportions such costs shall be borne by such parties;

(vii) The existence or subsistence of a Dispute or the commencement or continuation of arbitration proceedings, shall not, in any manner, prevent or postpone the performance of those obligations of Parties under this Agreement which are not in dispute; and

(viii) Nothing contained herein shall preclude a Party from seeking interim equitable or injunctive relief, or both in relation to any Disputes. Pursuing equitable or injunctive reliefs shall not be a waiver of the right of the Parties to pursue any other remedy or relief through the arbitration described in this Clause 8.

9. CONFIDENTIALITY AND NON-DISCLOSURE

9.1 Each Party (and each Party shall direct each of its (i) Affiliates, (ii) directors, officers, employees, agents, advisers, accountants and consultants of that Party and/or of its respective Affiliates, and (iii) third party lenders and other finance providers) shall keep all Information confidential as per the terms of this Agreement and subject to Clause 9.2, shall not, without the prior written consent in writing of the other Parties, divulge the Information to any other Person or use the Information for any purpose.

9.2 The Parties may disclose Information for the purpose of consummation of the transactions contemplated under the Transaction Documents in the manner set out in this Agreement. Additionally, the confidentiality obligations contained herein shall not apply:

(i) To the extent that such Information is in the public domain other than by breach of this Agreement;

(ii) To the extent that such Information is required to be disclosed by any applicable Law or requested to be disclosed by any Governmental Authority to whose jurisdiction the relevant Party is subject provided that such disclosing Party shall provide notice of such disclosure to the extent reasonably practicable and legally permitted to the other Parties;

(iii) To employees, directors, members, officers, partners, insurers (including brokers and re-insurers), agents, advisors (including attorneys, accountants, consultants, appraisers, auditors and financial advisors) and potential sources of capital (including prospective limited partners and related advisors or agents) of any Party or its Affiliates on a need-to-know basis, subject to the disclosing Party informing such persons of the confidential nature of such Information, and provided that such party shall continue to maintain the confidential nature of such Information on terms at least as strict as set out in this Agreement;

(iv) To the extent that any Information has been independently developed by a Party without reference to any Information furnished by any other Party hereto;

(v) In the case of HIPL, disclosure of the Information to any direct or indirect shareholders/investors/limited partners/general partners of HIPL subject to the disclosing Party informing such persons of the confidential nature of such Information, and provided that such party shall continue to maintain the confidential nature of such Information on terms at least as strict as set out in this Agreement;

(vi) To the extent required by a Party for the enforcements of its rights and obligations under this Agreement, provided that such disclosing Party shall provide notice of such disclosure to the extent reasonably practicable and legally permitted to the other Parties; and

(vii) In the case of HIPL, after the Closing Date, disclosure of the Information to any potential transferee of any security(ies) held by HIPL in VCPL, on a need-to-know basis, subject to the disclosing Party informing such persons of the confidential nature of such Information, and provided that such party shall continue to maintain the confidential nature of such Information on terms at least as strict as set out in this Agreement.

For the purpose of this Agreement, "**Information**" includes without limitation, the following: (a) information concerning the organization, business, affairs, projects, intellectual property, technology, trade secrets, know-how, strategies, finance, database, or property of any of the Parties (whether such information is furnished before, on or after the Execution Date), (b) existence of the Transaction Documents, and (c) the information in relation to the terms contained in the Transaction Documents, or of the transactions contemplated pursuant to the terms of the Transaction Documents.

9.3 Notwithstanding the provisions of Clause 9.2, with effect from the Closing Date, each of the Promoters shall keep any and all Information and other materials passing between it and the other Parties confidential and shall not, without the prior written consent of the other Parties, divulge the Information to any other Person or use the Information for any purpose.

9.4 No formal or informal public announcement or press release, which makes reference to the terms and conditions of this Agreement or any of the matters referred to herein, shall be made or issued without the written consent of the Parties.

9.5 No Use of Blackstone Name

The Promoters, VCPL and / or the Company shall not in any way use the "Blackstone" name or mark or the mark or the name or mark of HIPL or its Affiliates, or any derivative thereof in any public disclosure, including any press release, without the prior written approval from HIPL.

10. NOTICES

10.1 Unless otherwise stated, all notices, approvals, instructions, demands and other communications given or made under this Agreement shall be in English and in writing and shall be given by personal delivery, or by sending the same by pre-paid registered mail addressed to the relevant Party at its address, or to the email account set out below:

(i) **If to the Promoters:**

Address	Plot No.300, Opp.Hislop College, Chitanvis Marg, Civil Lines, Nagpur - 01
E-mail	ashishagrawal@xsio.in
Attention	Ashish Agrawal

(ii) **If to HIPL:**

Address	Tower 1, Floor 15, One World Centre, Lower Parel, Mumbai, 400013
E-mail	Kunal.shah@hiparks.com
Attention	Kunal Harun Shah

Copy to:

Address	C/o The Blackstone Group (HK) Limited, Suite 901, 9/F Two IFC 8 Finance Street, Central, Hong Kong
E-mail	realestateasianotices@Blackstone.com
Attention	Richard Blair

(iii) **If to VCPL:**

Address	Tower 1, Floor 15, One World Centre, Lower Parel, Mumbai, 400013
E-mail	Kunal.shah@hiparks.com
Attention	Kunal Harun Shah

Copy to:

Address	"402", 4th Floor, M. G. House Ravindranath Tagore Road, Civil Lines, Nagpur Maharashtra 440001
E-mail	ashishagrawal@xsio.in
Attention	Ashish Agrawal

(iv) **If to the Company:**

Address	Tower 1, Floor 15, One World Centre, Lower Parel, Mumbai, 400013

E-mail	Kunal.shah@hiparks.com
Attention	Kunal Harun Shah

Copy to:

Address	"402", 4th Floor, M. G. House Ravindranath Tagore Road, Civil Lines, Nagpur Maharashtra 440001
E-mail	ashishagrawal@xsio.in
Attention	Ashish Agrawal

10.2 A Party may change or supplement the addresses given above, or designate additional addresses, for purposes of this Clause 10, by giving the other Parties written notice of the new address in the manner set forth above.

10.3 Any notice so served shall be deemed to have been duly given (i) in case of delivery by hand, when hand delivered to the other Party; or (ii) when sent by registered mail, on receipt by the addressee; or (iii) for electronic mail, upon a confirmation of transmission being recorded on the server of the Party sending the communication, unless the Party receives a message indicating failed delivery.

11. TERM AND TERMINATION

11.1 Term

This Agreement shall come into effect on the Execution Date and shall remain valid and binding on the Parties until such time that it is terminated in accordance with Clause 11.2 below.

11.2 Termination

(i) This Agreement may be terminated prior to Closing at the option of HIPL, by written notice to the other Parties, if:

(a) for any reason whatsoever, any of the Conditions Precedent are not completed in the manner agreed under this Agreement prior to the Long Stop Date;

(b) any of the Promoters are in material breach of any of its covenants under this Agreement or the VCPL SHA provided that if the relevant breach is curable, the Promoters shall be entitled to a 30 (thirty) day cure period after being notified of such breach;

(c) the Promoters are in material breach of any representations and warranties under this Agreement which remain uncured for a period of 30 (thirty) days after a receipt of notice from HIPL, subject to any further extension as may be mutually agreed between the Parties in writing;

(d) there is an occurrence, existence or subsistence of a Material Adverse Effect;

(e) if HIPL is unable to consummate the transaction on account of change in applicable Law after the Execution Date; and/or

(ii) This Agreement may be terminated at any time by the mutual agreement of the Parties.

11.3 Termination Notice

(i) If HIPL issues a notice of termination of this Agreement in accordance with Clause 11.2(i) ("**Termination Notice**"), each of the Promoters hereby irrevocably and unconditionally undertakes to:

(a) within 10 Business Days of the date of the Termination Notice, (as determined by HIPL in its sole discretion) either

(1) procure that the Company repays to VCPL the VCPL Loan together with interest thereon at the rate of 18% (eighteen percent) per annum from the relevant date(s) of disbursement(s) up to (and including) the date of repayment; or

(2) purchase, by way of assignment from VCPL, all of VCPL's rights, title and interest in and to VCPL Loan (including all accrued interest) for a purchase price equal to the aggregate principal outstanding plus interest thereon at the rate of 18% (eighteen percent)% per annum from the relevant date(s) of disbursement(s) up to (and including) the date of receipt of the purchase consideration; and

(b) within 10 (ten) Business Days of the date of the Termination Notice, purchase from VCPL all Equity Shares held by VCPL in the Company for a consideration equivalent to the aggregate of the consideration paid by VCPL for acquisition of such Equity Shares plus interest thereon at the rate of 18% (eighteen percent) per annum from the date of payment of such consideration by VCPL up to (and including) the date of receipt of the purchase consideration.

(ii) The undertakings in Clause 11.3(i) are irrevocable and unconditional and shall automatically arise and become binding upon issuance of the Termination Notice by HIPL. The Promoters shall not challenge, object to or delay the implementation of the same.

(iii) From and after the date of the Termination Notice, notwithstanding anything to the contrary, no further obligations of HIPL or VCPL to perform, fund or otherwise comply with any provision of this Agreement shall apply, other than (a) their obligations (if any) to execute such instruments and do such acts as are strictly necessary to effect the transfers and assignments contemplated in Clause 11.3(i); and (b) any obligations expressly stated to survive termination.

(iv) This Agreement shall be deemed to stand terminated with effect from the date on which:

(a) the repayment / assignment of VCPL Loan and interest has been completed in accordance with Clause 11.3(i)(a); and

(b) the transfer of all equity shares held by VCPL in the Company has been completed in accordance with Clause 11.3(i)(b) (together, "**Termination Completion**").

(v) Notwithstanding anything to the contrary, upon Termination Completion, the Promoters and their Affiliates shall have no claims or recourse whatsoever against HIPL, VCPL or any of their Affiliates, whether in contract, tort, law or otherwise.

11.4 Effect of Termination

(i) The termination of this Agreement shall not relieve any of the Parties of any obligation or liability accrued prior to the date of termination and the right to terminate and termination as aforesaid shall be without prejudice to all the contractual, equitable and legal rights and remedies available to the Parties.

(ii) The provisions of Clauses 1 (*Definitions and Interpretation*), 8 (*Dispute Resolution*), 9 (*Confidentiality and Non-disclosure*), 10 (*Notices*), this Clause 11.3 and 11.4, 13 (*Miscellaneous*) shall survive the termination of this Agreement.

11.5

12. MISCELLANEOUS

12.1 Actions on the Execution Date

On the Execution Date, (i) VCPL shall provide to the other Parties certified true copies of the Pre-Closing Resolutions with respect to VCPL; (ii) Promoter 2 shall provide to the other Parties, certified true copies of the Pre-Closing Resolutions with respect to the Promoter 2; (iii) HIPL shall provide to the other Parties, certified true copies of the Pre-Closing Resolutions with respect to HIPL; (iv) the Company shall provide to the other Parties certified true copies of the Pre-Closing Resolutions with respect to the Company; and (v) execution of the Company Shareholders' Agreement amongst the parties thereto.

12.2 Execution

Delivery of an executed signature page of a counterpart by facsimile transmission or in Adobe^{TM} Portable Document Format (PDF) sent by electronic mail shall take effect as delivery of an executed counterpart of this Agreement. If either method is adopted, each Party shall provide the others with the original of such page as soon as reasonably practicable thereafter.

12.3 Counterparts

This Agreement may be executed simultaneously in any number of counterparts, each of which will be deemed an original, but all of which will constitute one and the same instrument.

12.4 Specific Performance

This Agreement shall be specifically enforceable at the instance of a Party. The Parties agree that the non-defaulting Party will suffer immediate, material, immeasurable, continuing and irreparable damage and harm in the event of any material breach of this Agreement and the remedies at applicable Law in respect of such breach will be inadequate and that the non-defaulting Party shall be entitled to seek specific performance against the defaulting Party for performance of its obligations under this Agreement in addition to any and all other legal or equitable remedies available to it.

12.5 Entire Agreement

This Agreement, along with the other Transaction Documents, constitutes and contains the entire agreement and understanding between the Parties with respect to the subject matter hereof and supersedes all previous communications, negotiations, commitments, either oral or written, between the Parties with respect to the subject matter hereof.

12.6 Governing Law and Jurisdiction

This Agreement shall be governed in all respects by the laws of India (without reference to its conflict of laws provisions). Subject to the provisions of Clause 8, the Parties agree to be subject to the non-exclusive jurisdiction of the courts in Nagpur, India.

12.7 Severability

Any provision of this Agreement, which is invalid or unenforceable, shall be ineffective to the extent of such invalidity or unenforceability, without affecting in any way the remaining provisions hereof. If for any reason whatsoever, any provision of this Agreement is or becomes, or is declared by a court of competent jurisdiction to be, invalid, illegal or unenforceable, then the Parties will negotiate in good faith to agree on such provision to be substituted, which provisions shall, as nearly as practicable, leave the Parties in the same or nearly similar position to that which prevailed prior to such invalidity, illegality or unenforceability.

12.8 Amendments

No change, alteration, modification or addition to this Agreement shall be valid unless in writing and properly executed by the Parties hereto.

12.9 Rights Cumulative

(i) The rights, powers, privileges and remedies provided in this Agreement are cumulative and subject to Clause 7.6, are not exclusive of any rights, powers, privileges or remedies provided by applicable Law or otherwise.

(ii) No failure to exercise nor any delay in exercising any right, power, privilege or remedy under this Agreement shall in any way impair or affect the exercise thereof or operate as a waiver thereof in whole or in part.

(iii) No single or partial exercise of any right, power, privilege or remedy under this Agreement shall prevent any further or other exercise thereof or the exercise of any other right, power, privilege or remedy.

12.10 Successors and Assigns

No rights, liabilities or obligations under this Agreement shall be assigned by either Party without the prior written consent of the other Parties. Notwithstanding the foregoing, HIPL may assign the whole or any part of this Agreement or its rights hereunder, unilaterally without obtaining the consent of any of the other Parties, to one or more Affiliates or to any direct or indirect transferees of all or a portion of any Equity Securities or securities held by HIPL in VCPL.

12.11 Costs and Expenses

(i) Except as otherwise provided in this Agreement, each Party shall pay its own expenses in connection with the preparation and performance of this Agreement and the consummation of the transactions contemplated hereby, including without limitation, all fees and expenses of legal and financial advisors, independent accountants and actuaries.

(ii) All statutory costs and expenses (including payment of applicable stamp duty) incurred in respect of or relating to this Agreement shall be borne by Company.

(iii) All statutory costs and expenses (including payment of applicable stamp duty) incurred in respect of issuance of the Company OCDs shall be borne by the Company.

12.12 No Waiver

No waiver of any provision of this Agreement or consent to any departure from it by any Party shall be effective unless it is in writing and signed by a duly authorized representative of the concerned Party. A waiver or consent shall be effective only for the purpose for which it is given. No default or delay on the part of any Party in exercising any rights, powers or privileges operates as a waiver of any right, nor does a single or partial exercise of a right preclude any exercise of other rights, powers or privileges.

12.13 Further Assurances

The Parties shall execute other documents, cause meetings to be held, cause resolutions to be passed, exercise their votes and do and perform, and cause to be done and performed such further acts and things as may be necessary or desirable in order to give full effect to this Agreement and the transactions contemplated under this Agreement, whether prior to or after the Closing Date.

12.14 No Recourse

(i) Notwithstanding anything that may be expressed or implied in the Transaction Documents, each Party agrees and acknowledges that a Party shall not have any rights against, and no such Person shall make any claim (whether by the enforcement of any assessment, by any legal or equitable proceeding or by virtue of any applicable Law) against any Non-Recourse Persons in connection with the Transaction Documents or any other instrument, agreement or document referred to herein or therein or to be delivered hereunder or thereunder (whether by the enforcement of any assessment or by any legal or equitable proceeding, or by virtue of any statute, regulation or other applicable Law, or by or through attempted piercing of the corporate veil, by or through a claim by or on behalf of any Person against any Non-Recourse Person, in equity or at Law, in contract, tort or otherwise), and that any such claim shall only be made against the Parties to the Transaction Documents.

(ii) In addition, and for the avoidance of doubt, it is expressly agreed and acknowledged by each Party (for itself and on behalf of its Affiliates) that no liability whatsoever shall attach to, be imposed on or otherwise be incurred by any Non-Recourse Person for any obligation of a Party under the Transaction Documents, or any other instrument, agreement or document referred to herein or therein or to be delivered hereunder or thereunder for any claim based on, in respect of, or by reason of such obligations or their creation.

(iii) For the purpose of this Clause, "**Non-Recourse Persons**" means, with respect to a Party, any former, current or future direct or indirect equity holder or other beneficial owner, controlling person, trustee, director, officer, agent, representative, Affiliate, employee, general or limited partner, member or manager of the Party or any of its Affiliates, or any former, current or future direct or indirect equity holder or other beneficial owner, controlling person, trustee, director, officer, agent, representative, Affiliate, employee, general or limited partner, member or manager of any of the foregoing, or any representative or any of the successors and assigns of each of the foregoing, but excluding (for the avoidance of doubt) the Party and any Person who subsequently becomes a Party to this Agreement and/or the other Transaction Documents. Notwithstanding any provision of this Agreement, this Clause shall survive termination of this Agreement.

12.15 Relationship of the Parties

The Parties are independent contractors. None of the Parties shall have any right, power or authority to enter into any agreement for or on behalf of, or incur any obligation or liability of, or to otherwise bind, the other Parties except as specifically provided by this Agreement. Nothing in this Agreement shall be interpreted or construed to create an association or partnership between the Parties, deem them to be persons acting in concert or to impose any liability attributable to such relationship upon any of the Parties nor, unless expressly provided otherwise, to constitute any Party as the agent of any of the other Parties for any purpose. The Parties agree that HIPPL is only a financial investor and is not responsible for the day-to-day affairs of the Company.

12.16 Promoter Representative

(i) Mr. Ashish Agrawal ("**Promoter Representative**") is hereby constituted and appointed as agent and attorney for and on behalf of the Promoters. The Promoter Representative shall have full power and authority, on behalf of each of the Promoters to: (a) execute and deliver and receive deliveries of all agreements, certificates, statements, notices, approvals, extensions, waivers, amendments, and other documents required or permitted to be given in connection with or consummation of the transactions contemplated by this Agreement; (b) receive notices in connection with any Claims under this Agreement; (c) negotiate, enter into settlements and compromises of, or assume the defense of, Claims, and demand arbitration and comply with orders of courts and awards of arbitrators with respect to such Claims; and (d) give and receive notices and communications on behalf of the Promoters in connection with this Agreement.

(ii) A decision, act, consent or instruction of the Promoter Representative, shall constitute a decision of all the Promoters and shall be final, binding and conclusive upon each such Promoter and HIPL may rely upon any decision, act, consent or instruction of the Promoter Representative, as being the decision, act, consent or instruction of each and every Promoter. HIPL is hereby relieved from any liability to any person for any acts done by them in accordance with such decision, act, consent or instruction of the Promoter Representative.

(iii) The Promoters shall be jointly and severally responsible for all obligations imposed on them under this Agreement.

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IN WITNESS WHEREOF THE PARTIES HERETO HAVE EXECUTED THIS AGREEMENT ON THE DATE AND YEAR FIRST ABOVE WRITTEN

Signed and delivered for and on behalf of

XSIO LOGISTICS PARKS PRIVATE LIMITED

Authorized Signatory

Name: ABHISHEK AGRAWAL

Designation: Director

XSIO LOGISTICS PARKS PRIVATE L

Signature page to the Investment Agreement executed by and amongst Vidarbha Cargo Private Limited, Ashish Agrawal, Rajesh Steel Industries Private Limited, Horizon Industrial Parks Limited and XSIO Logistics Parks Private Limited

IN WITNESS WHEREOF THE PARTIES HERETO HAVE EXECUTED THIS AGREEMENT ON THE DATE AND YEAR FIRST ABOVE WRITTEN

Signed and delivered for and on behalf of

VIDARBHA CARGO PRIVATE LIMITED

VIDARBHA CARGO PVT. LTD.

Authorized Signatory

Name: ASHISH AGRAWAL

Designation: Director

Signature page to the Investment Agreement executed by and amongst Vidarbha Cargo Private Limited, Ashish Agrawal, Rajesh Steel Industries Private Limited, Horizon Industrial Parks Limited and XSIO Logistics Parks Private Limited

IN WITNESS WHEREOF THE PARTIES HERETO HAVE EXECUTED THIS AGREEMENT ON THE DATE AND YEAR FIRST ABOVE WRITTEN

Signed and delivered for and on behalf of

RAJESH STEEL INDUSTRIES PRIVATE LIMITED

RAJESH STEEL INDUSTRIES PVT. LTD.

Authorized Signatory

Name: ABHISHEK AGRAWAL

Designation: Director

Signature page to the Investment Agreement executed by and amongst Vidarbha Cargo Private Limited, Ashish Agrawal, Rajesh Steel Industries Private Limited, Horizon Industrial Parks Limited and XSIO Logistics Parks Private Limited

IN WITNESS WHEREOF THE PARTIES HERETO HAVE EXECUTED THIS AGREEMENT ON THE DATE AND YEAR FIRST ABOVE WRITTEN

ASHISH AGRAWAL

IN WITNESS WHEREOF THE PARTIES HERETO HAVE EXECUTED THIS AGREEMENT ON THE DATE AND YEAR FIRST ABOVE WRITTEN

Signed and delivered for and on behalf of

HORIZON INDUSTRIAL PARKS LIMITED

Horizon Industrial Parks Limited

Authorized Signatory

Name: Mr. Kunal H. Shah

Designation: Authorized Signatory

Signature page to the Investment Agreement executed by and amongst Vidarbha Cargo Private Limited, Ashish Agrawal, Rajesh Steel Industries Private Limited, Horizon Industrial Parks Limited and XSIO Logistics Parks Private Limited

SCHEDULE I

CONDITIONS PRECEDENT

PART A - PART A CONDITIONS PRECEDENTS

1. Each of the Representations shall be true and accurate as of the Execution Date and as of the Closing Date, as though made on and as of such date with regard to the prevailing facts and circumstances therein.

2. Each of the Promoters being in compliance with their respective obligations, covenants and undertakings under this Agreement or any other Transaction Document required to be performed and/or complied prior to the Closing.

3. No Material Adverse Effect shall have occurred or be reasonably expected to occur.

4. Neither any of the Promoters nor any of the Beneficial Owners has been, nor is, the target or subject of any Sanctions Laws, and each has at all times complied with Sanctions Laws.

5. The Promoters and the Beneficial Owners are, and have historically complied with Anti-Corruption Laws, Anti-Money Laundering Laws and Sanctions Laws.

6. The Company shall have duly convened a meeting of the Company Board and passed the following resolutions at such meeting:

   (i) approving the offer and issuance of the Company OCDs to VCPL;

   (ii) approving issuance of the private placement offer letter in Form PAS-4 in respect of the Company OCDs to VCPL and authorizing representatives of the Company to file necessary forms with the ROC with respect to the private placement of the Company OCDs to VCPL; and

   (iii) convening a meeting of shareholders at shorter notice.

7. The Company shall have duly convened a meeting of the shareholders and passed the following resolutions at such meeting:

   (i) approving offer and issuance of the Company OCDs to VCPL; and

   (ii) approving issuance of the private placement offer letter in Form PAS-4 in respect of the Company OCDs to VCPL; and authorizing representatives of the Company to file necessary forms with the ROC with respect to the private placement of the Company OCDs to VCPL.

8. Company shall have filed MGT-14 in respect of the aforesaid resolutions with the ROC.

9. The Company shall have obtained and shall have delivered to HIPL and VCPL, a valuation report, in a form and substance acceptable to HIPL, from a chartered accountant of repute with respect to the fair market value of the Company OCDs proposed to be issued by the Company as computed in accordance with Rule 11UA of the Income Tax Rules, 1962.

10. The Company shall have obtained and shall have delivered to HIPL and VCPL, a valuation report, in a form and substance acceptable to HIPL, from a registered valuer certifying the

fair market valuation of the Company OCDs proposed to be issued by the Company as computed in accordance the Act.

11. There being no legal, physical, or regulatory impediment that prevents or adversely affects the Company's ability to obtain valid leasehold title rights over the Company Land, free of Encumbrances, and /or to peacefully construct, develop and manage warehouse(s) thereon.

12. Each of the Promoters being in compliance with their respective covenants under the Transaction Documents required to be performed and/or complied prior to the Closing.

13. The Company Land is free of all encroachments, structures (whether permanent or temporary in nature), movable goods and materials.

14. HIPL, VCPL and/or their respective consultants or advisors have been provided with all documents and information requested for the purposes of conducting the due diligence as set out hereinbelow in Part B of this Schedule I.

15. Format of restated Articles to be adopted by the Company on Closing, shall be in agreed form.

PART B - PART B CONDITIONS PRECEDENTS

1. HIPL shall have completed, or shall have caused to be completed, a comprehensive due diligence in respect of the Company Land, including technical, legal, title, regulatory, commercial, environmental and operational aspects, as relevant, including in the context of developing and operating warehouse(s); and the findings of such due diligences shall be satisfactory to HIPL in its sole discretion, including there being no discovery of adverse physical or technical site conditions, including (i) poor soil conditions; (ii) risk of flooding, or topographical unsuitability; and (iii) obstruction of access or interference with ingress/egress, and any issues identified shall have been resolved to the satisfaction of HIPL by the Promoters.

2. HIPL shall have completed, or shall have caused to be completed, a comprehensive legal and corporate due diligence in respect of the Company.

SCHEDULE II

REPRESENTATIONS AND WARRANTIES

PART A | REPRESENTATIONS AND WARRANTIES OF THE PROMOTERS

1. Power and Authority

(i) Promoter 2 is duly incorporated and validly existing under the laws of India, and has full power, authority and capacity to take all corporate actions necessary to execute the Transaction Documents, and perform the transactions and obligations contemplated by the Transaction Documents.

(ii) The Promoters are residents of India and are not foreign owned or foreign controlled under the Foreign Exchange Laws.

(iii) Each Promoter is registered with the Indian income tax authorities and has been allotted Permanent Account Number (PAN).

(iv) The Transaction Documents to which each Promoter is a party has been duly and validly executed by such Promoter and constitutes, legal, valid and binding obligations of such party, enforceable against it/him in accordance with its terms thereof.

(v) Promoter 1 has full power, authority and capacity to execute the Transaction Documents, and perform the transactions and obligations contemplated by the Transaction Documents.

(vi) The execution, delivery and performance by the Promoters of the Transaction Documents and the consummation of transactions contemplated herein/therein does not:

(a) in case of Promoter 2, conflict with or violate its Charter Documents;

(b) conflict with or violate any Order, judgement or decree applicable to the Promoter;

(c) result in a breach of, or acceleration of any obligation under, any contract to which it is a party or the creation of any Encumbrance over the Company Land; or

(d) constitute an act of bankruptcy, insolvency or fraudulent conveyance under any bankruptcy act or other applicable Law in relation to the Promoters.

(vii) No Consent or Governmental Approval to, from or with any Person is required on the part of the Promoters in connection with the execution, delivery and performance of the Transaction Documents or the consummation of the transactions contemplated in the Transaction Documents.

(viii) No event which would cause (individually or in the aggregate), a Material Adverse Effect as regards to the Promoter's ability to consummate the transactions contemplated herein has occurred, which is subsisting or has been threatened in writing.

(ix) No Order has been served on the Promoters nor do the Promoters have knowledge of any petition pending or admitted for winding up (or other process whereby the business of Promoter 2 is terminated, or the assets of the Promoters are distributed amongst the creditors or shareholders or other contributories) of the Promoters or for an administration order against the Promoters. There are no proceedings under any applicable insolvency, or similar Laws concerning the Promoters and to the Knowledge of the Promoters no events have occurred under applicable insolvency or similar Laws which would result in any such proceedings.

2. Compliance with Laws

(i) The Beneficial Owners and Promoter 2 have not received any written notice from any Governmental Authority in respect of any non-compliance with any applicable Laws.

(ii) Other than any statutory tax deductions or other monies to be paid to any Governmental Authority by the Promoters under applicable Law, any amounts provided by HIPL to the Promoters under this Agreement is for the sole benefit of the Beneficial Owners.

(iii) The Beneficial Owners and Promoter 2 have not received any written notice from any Governmental Authority and there are no outstanding investigations or inquiries by, or disputes with a Governmental Authority or dispute or proceedings with any Person, or any internal investigation, in each case, relating to any violation of any applicable Anti-Corruption Laws, Anti-Money Laundering Laws or Sanctions Laws by (a) the Beneficial Owners, or (b) Promoter 2.

(iv) The Beneficial Owners and Promoter 2 have not taken any action that would constitute a violation, or implicate HIPL in a violation, of the Prevention of Corruption Act, 1988 or other applicable Anti-Corruption Laws.

(v) Neither the Beneficial Owners nor Promoter 2, have made or promised to make any Improper Payments, (in relation to the Business or the Project): (a) to or for the use or benefit of any Government Official; (b) to any other Person either for an advance or reimbursement, with knowledge or reason to know that any part of such Improper Payment would be directly or indirectly given or paid by such other person, or would reimburse such other Person for Improper Payments previously made, to any Government Official; or (c) to any other Person or entity, to obtain or keep business or to secure some other improper advantage, or the payment of which would otherwise violate the Prevention of Corruption Act or other applicable Anti-Corruption Laws.

(vi) Neither the Beneficial Owners nor Rajesh Steel are a Governmental Authority or a Government Official (as the case may be).

(vii) ***Compliance with Economic Sanctions***

Neither the Beneficial Owners nor Promoter 2 is a person or entity with whom transactions are prohibited under any Sanctions Laws, or is named on any list of Prohibited Persons, entities, or jurisdictions maintained and administered by OFAC or the Reserve Bank of India.

(viii) The Beneficial Owners will not use any amounts payable under this Agreement or the relationship proposed herein, for the purposes of financing the activities of, any persons and countries that are, or were at the relevant time, subject to any Sanctions

Laws, including (a) any “Specially Designated Nationals and Blocked Persons,” or named on any list of Prohibited Persons, entities, or jurisdictions maintained and administered by OFAC or the Reserve Bank of India, (b) any jurisdiction or other territory that is, or was at the relevant time, subject to a comprehensive export, import, financial or investment embargo under any Sanctions Laws, including Cuba, Iran, North Korea, Syria, the Crimea region of Ukraine, the so-called “Donetsk People’s Republic” and the so-called “Luhansk People’s Republic”, or any other country or territory that is similarly subject to or the target of comprehensive country-wide or territory-wide Sanctions Laws; or (c) otherwise in violation of any Sanctions Laws.

(ix) ***Compliance with Anti-Money Laundering Laws***:

The Beneficial Owners and Rajesh Steel have not taken any action that would constitute a violation of the Prevention of Money Laundering Act, 2002 or other applicable Anti-Money Laundering Laws.

3. Others

(i) The aggregate of all charges, amounts, land premium and dues payable, and/or costs incurred/to be incurred in respect of procuring valid Leasehold Interest by the Company over the Company Land, including towards the fulfilment of the ATL Milestone and for obtaining the duly stamped and registered Lease Deed, including all stamp duty, registration fees (if any), change in land use or zoning charges, charges payable under Laws pertaining to urban land ceiling (if any), GST and other Taxes, interests, penalties and such other payments, shall not in any event exceed Rs 20,40,00,000/- (Rupees Twenty Crores Forty Lakhs only).

PART B | COMPANY REPRESENTATIONS AND WARRANTIES

1. **Power and Authority**

(i) The Company is a private limited company duly incorporated and organized and validly existing under the Companies Act, 2013.

(ii) The Company has the full power, authority and capacity to execute the Transaction Documents and perform and observe all the terms contained herein/therein, and the Company has taken all corporate actions as necessary to enter into, execute and deliver the Transaction Documents and to consummate and perform the transactions and its obligations contemplated by the Transaction Documents.

(iii) The Transaction Documents have been duly and validly executed by the Company and constitutes legal, valid and binding obligation of the Company, enforceable against it in accordance with their terms.

(iv) The Company is resident in India.

(v) The Company is not bound by any Contract, which may restrict its right or ability to enter into this Agreement, perform its obligations or consummation of transactions contemplated in this Agreement, or which would be breached as a result of execution or performance of the Transaction Documents.

(vi) The execution, delivery and performance by the Company of the Transaction Documents and the consummation of the transactions contemplated hereby does not and will not conflict with or violate any provisions of (a) constitutional documents of the Company, (b) any applicable Law, or (c) any Order, judgment, writ, injunction or decree of any court or tribunal or Governmental Authority to which the Company or its assets and properties are bound or affected.

(vii) No Consent or Governmental Approval to, from or with any Person is required on the part of the Company in connection with the execution, delivery and performance of the Transaction Documents, the compliance by it with any of the provisions hereof, or the consummation of the transactions contemplated herein.

(viii) No Order has been served on the Company nor is the Company aware of any petition pending or admitted for winding up (or other process whereby the Assets of the Company are distributed amongst the creditors or shareholders or other contributories) or for an administration order against the Company.

2. **Shareholding & Capital Structure of the Company**

(i) VCPL is the legal and absolute owner of all the Company Securities. The details of the authorised, subscribed, issued and paid-up share capital of the Company as on the Execution Date is as set out in Part A of **Schedule VII**, and the shareholding pattern of the Company as on the Execution Date, on a Fully Diluted Basis, is as set out in Part B of **Schedule VII**.

(ii) VCPL has good and marketable title to the Company Securities, free and clear of any and all Encumbrances, equities, and claims whatsoever. All the rights attached to the Company Securities, exclusively vest in and are exercisable by VCPL.

(iii) All Company Securities have been validly issued / acquired (as applicable), fully paid and no Person has the right (whether under applicable Law, Contract or otherwise) to exercise or claim any Encumbrance over any of the Company Securities.

(iv) There are no legal, regulatory, or contractual impediments that would prevent or invalidate the dematerialisation of the Company Securities.

(v) Neither the Company, nor has anyone on its behalf, done, committed or omitted any act, deed, matter or thing whereby any of the Company Securities can be forfeited, extinguished or rendered void or voidable.

(vi) The Company Securities held by VCPL comprise and represent 100% (one hundred percent) of the share capital of the Company as on the Execution Date on a Fully Diluted Basis.

(vii) There are no:

(a) pre-emptive rights, rights of first refusal or other similar rights relating to any Company Securities; and

(b) shareholder agreements, voting trusts or other arrangements or understandings with respect to the voting on any of the Company Securities.

(viii) Neither any Promoter, nor the Company, has not entered into any agreement, arrangement or understanding with any Person which could result in an obligation for HIPL or VCPL or the Company to pay any finder's fee, brokerage commission, advisory fee (excluding fees to be paid to legal and tax advisors) or similar payment in connection with the transactions contemplated hereby.

(ix) On the Acquisition Date prior to Acquisition Completion:

(a) Each Prior Shareholder was the sole legal and beneficial owner of their respective portion of the Sale Shares.

(b) Each Prior Shareholder had legal, good and marketable title to their respective portion of the Sale Shares, free and clear of any and all Encumbrances, equities, and claims whatsoever, with full right and authority to sell and deliver the same to VCPL and its nominee. Each Prior Shareholder has complied with applicable Laws in relation to the sale and transfer of their respective portion of the Sale Shares in favour of VCPL and its nominee.

(c) All of the Sale Shares had been duly authorized, validly issued/transferred and acquired, fully paid and no Person had the right (whether under applicable Law, Contract or otherwise) to exercise or claim any Encumbrance over any of them. Each acquisition of Sale Shares by the Prior Shareholders was made in accordance with all applicable Laws.

(x) Prior Shareholder 1 has validly transferred 5000 (five thousand) Equity Shares forming part of the Sale Shares to VCPL; and Prior Shareholder 2 has validly transferred 5000 (five thousand) Equity Shares forming part of the Sale Shares to VCPL, in each case, on the Acquisition Date, free from all Encumbrances, and VCPL and its nominee, Ashish, have been duly registered as the holder of such Equity Shares in the register of members of the Company.

(xi) The Prior Shareholders have not, nor has anyone on its behalf, done, committed or omitted any act, deed, matter or thing whereby any of the Sale Shares and/or the sale and transfer thereof in favour of VCPL and its nominee can be forfeited, extinguished or rendered void or voidable.

(xii) There are no accrued and unpaid interest or dividends on the Sale Shares.

(xiii) The Prior Shareholders have not entered into any agreement, arrangement or understanding with any Person which could result in an obligation to VCPL to pay any finder's fee, brokerage commission, advisory fee (excluding fees to be paid to legal and tax advisors) or similar payment in connection with the transactions contemplated hereby.

(xiv) The shareholding pattern of the Company, on a Full Diluted Basis, as on the Acquisition Date immediately prior to, and immediately after, the Acquisition Completion is as set out in Part A and Part B of the Schedule XI, respectively.

3. **Compliance with Laws**

(i) The Company has from the date of its incorporation been in material compliance with all applicable Laws (including without limitation Foreign Exchange Laws, Environmental Laws, Anti-Corruption Laws, Anti-Money Laundering Laws and Sanctions Laws to the extent applicable to the Company), and has made filing of appropriate returns, statements, reports, registrations with the relevant Governmental Authority as required under applicable Laws (along with requisite penalty/fee, in case of any delayed/ belated filings).

(ii) The Company is not in default with respect to any Order served upon it, and there are no outstanding investigations, inquiries or disputes with any Governmental Authorities in respect of any non-compliance with applicable Law.

(iii) The Company has not received any written notice from any Governmental Authority in respect of any non-compliance with any applicable Laws in respect of the Company or the Company Land.

(iv) The Company has not received any written notice from any Governmental Authority and there are no outstanding investigations or inquiries by, or disputes with a Governmental Authority or dispute or proceedings with any Person, or any internal investigation, in each case, relating to any violation of any applicable Anti-Corruption Laws, Anti-Money Laundering Laws or Sanctions Laws by (a) any of the Beneficial Owners, or (b) Rajesh Steel.

(v) The Company has not taken any action that would constitute a violation, or implicate HIPL in a violation, of the Prevention of Corruption Act, 1988 or other applicable Anti-Corruption Laws.

(vi) The Company has not made or promised to make any Improper Payments in relation to the Company Land: (a) to or for the use or benefit of any Government Official; (b) to any other Person either for an advance or reimbursement, with knowledge or reason to know that any part of such Improper Payment would be directly or indirectly given or paid by such other person, or would reimburse such other Person for Improper Payments previously made, to any Government Official; or (c) to any other Person or entity, to obtain or keep business or to secure some other improper advantage, or the payment of which would otherwise violate the Prevention of Corruption Act or other applicable Anti-Corruption Laws.

(vii) The Company is not a Governmental Authority or a Government Official (as the case may be).

(viii) ***Compliance with Economic Sanctions***

The Company is not a person or entity with whom transactions are prohibited under any Sanctions Laws, or is named on any list of Prohibited Persons, entities, or jurisdictions maintained and administered by OFAC or the Reserve Bank of India.

(ix) The Company will not use any amounts payable under this Agreement or the relationship proposed herein, for the purposes of financing the activities of, any persons and countries that are, or were at the relevant time, subject to any Sanctions Laws, including (a) any "Specially Designated Nationals and Blocked Persons," or named on any list of Prohibited Persons, entities, or jurisdictions maintained and administered by OFAC or the Reserve Bank of India, (b) any jurisdiction or other territory that is, or was at the relevant time, subject to a comprehensive export, import, financial or investment embargo under any Sanctions Laws, including Cuba, Iran, North Korea, , the Crimea region of Ukraine, the so-called "Donetsk People's Republic" and the so-called "Luhansk People's Republic", or any other country or territory that is similarly subject to or target of comprehensive country-wide or territory-wide Sanctions Laws; or (c) otherwise in violation of any Sanctions Laws.

(x) ***Compliance with Anti-Money Laundering Laws***:

The Company have not taken any action that would constitute a violation of the Prevention of Money Laundering Act, 2002 or other applicable Anti-Money Laundering Laws

5. Others

The Promoters have not on behalf of the Company filed any entity classification election with the U.S. Internal Revenue Service.

6. Business of the Company

(i) The Company has not carried on, conducted or engaged in any business, trade or commercial activity other than the Business.

(ii) Since its incorporation, the Company has not conducted any business whatsoever, save for activities relating to the Business.

(iii) The Company has not and does not engage in any other business or activity including any business in which foreign direct investment of 100% (one hundred percent) under the automatic route is not permitted.

(iv) The minute books of the Company contain true, correct and complete records of all meetings and accurately reflect all corporate action of the shareholders and the Company Board (including committees thereof) of the Company that are required by Law to be recorded in the minutes.

(v) The Company has not undertaken and does not undertake any business activities other than work for procuring the allotment of the Company Land from MIDC in accordance with the applicable Laws.

(vi) The statutory registers of the Company are true, correct and complete in all material respects.

(vii) The Company has provided to HIPL true, correct and complete copies of the Charter Documents of the Company and all amendments thereto.

(viii) True and accurate details of all existing bank accounts of the Company are as set out below:

Details of Bank Account	Purpose	Signatories
Bank Name: Axis Bank	Business Transactions	**Mr Ashish Mohan Agrawal** **Mr. Abhishek Mohan Agrawal**
Account Name: Xsio Logistics Parks Private Limited		
Account Type: Current Account		
Account No: 922-020-012-038-973		
IFSC: UTIB0000048		
Branch: Civil Lines, Nagpur		

Details of Bank Account	Purpose	Signatories
Bank Name: Bank of Baroda	Business Transactions	**Mr Ashish Mohan Agrawal** **Ms. Kuntal Ashish Agrawal** **Mr. Abhishek Mohan Agrawal**
Account Name: Xsio Logistics Parks Private Limited		
Account Type: Current Account		
Account No: 731-302-000-016-71		
IFSC: BARB0DBCNAG		
Branch: Civil Lines, Nagpur		

7. Liabilities and Financial Indebtedness

(i) The Company does not have any outstanding Financial Indebtedness or other borrowings and/or Liabilities other than the VCPL Loan and the Promoter Loan.

(ii) The Company does not have any obligations, commitments (whether actual, contingent or otherwise) Liabilities which are accrued, contingent or outstanding

Liabilities as of the Execution Date, the Closing Date, and ATL Execution Date, other than the VCPL Loan and the Promoter Loan.

(iii) The Company is not a party to any swap, hedging or derivative transactions, agreements and/or other similar arrangements.

(iv) The Company has availed VCPL Loan and Promoter Loan in compliance with applicable Laws.

(v) There are neither any ongoing disputes between the Company and any vendor nor are there any unaccounted claims, liquidated damages, penalty, or interest levied by any vendor on the Company, and there are no facts or circumstances which may reasonably be expected to give rise to any such dispute or claims.

(vi) The aggregate amount payable by the Company in respect of the Promoter Loan is INR 10,62,125/- (Indian Rupees Ten lakhs Sixty Two Thousand One Hundred and Twenty Five only), and that no other amount, fee, charge or sum of any nature shall at any time accrue, be outstanding or become payable by the Company in connection with the Promoter Loan.

8. Tangible Movable Property

The Company does not own any movable property.

9. Information and Disclosure

(i) The information provided to HIPL (including its advisors and representatives) in relation to: (a) the Company, the Company Land and the Business; (b) the Promoters or the shareholders in the context of ownership and management of the Company; and (c) the KYC documents and anti-corruption questionnaires provided by the Promoters and the Company, prior to the execution of this Agreement, as sought during the financial, business, technical and legal due diligence exercise carried out by HIPL, have been provided by the Company, and the Promoters, (as the case may be) in good faith and such information (other than estimates, projections, forecasts, statement of opinions) are true and correct.

(ii) All information that in the reasonable opinion of the Company, and Promoters which is material to an understanding of the financial condition of the Company or the Company Land as of the Execution Date, Closing Date, and ATL Execution Date, has been made available and disclosed to HIPL, and such information is true and correct and not misleading in any material respect. None of the information contained in any certificate, or other document delivered pursuant hereto or thereto or in connection with the Transaction Documents and the transactions contemplated therein contains any untrue statement of a fact.

10. Immoveable Assets prior to fulfilment of ATL Milestone

The warranties set out below under this Paragraph 10 shall be referred to collectively as the "**Existing Title Representations**":

(i) The Company Land is a single contiguous land parcel and the description of the Company Land included in this Agreement is true and accurate;

(ii) The Company Land has been allotted by MIDC to the Company free of any Encumbrances;

(iii) The Company Land falls in the Additional Butibori Industrial Area which is declared as an 'Industrial Area' by virtue of the Notification dated September 27, 2007, issued by the State Government of Maharashtra;

(iv) The (a) Letter dated April 29, 2025, bearing reference no. Ja. Kr. Mauvim/Prana/1010/2025 ("**MIDC Comfort Letter 1**"); (b) Letter dated May 6, 2025, bearing reference no. Ja. Kr. Mauvim/Prana/1072/2025 ("**MIDC Comfort Letter 2**"); (c) Offer Letter dated June 2, 2025, bearing letter no. MIDC/RO(NAGPUR)/Addl. Butibori/LMS-53/1422/2025 ("**MIDC Offer Letter**"); (d) Letter dated October 20, 2025, bearing reference no. Mauvim/Prana/3311/2025; and (e) MIDC Allotment Order, all addressed by MIDC to the Company (collectively "**MIDC Letters**"); and (I) Letter dated June 20, 2025, bearing reference no. MLP-2025/C.R. 142/Ind 2 ("**GoM Offer Letter**"); and (II) Letter dated August 11, 2025, bearing reference no. MLP-2025/C.R. 142/Ind 2 ("**Addendum to the GoM Offer Letter**"), both addressed by the State Government of Maharashtra to the Company (collectively "**GoM Letters**") are valid, binding and subsisting and the Company has complied with all the terms and conditions recorded therein *(as may be applicable upto the date of this Agreement)* and in the applicable MIDC and/or statutory policies /circulars/ orders/ resolutions/ notifications including but not limited to payment of any earnest money, deposit, land premium, costs stated therein, procurement of necessary approvals and submission of the forms as recorded therein and is not in breach and has not received any notice of breach/demand notice from MIDC or any competent authority in this regard. No notice of breach and/or termination of the MIDC Letters and GoM Letters, or breach of any other MIDC and/or statutory policies/circulars/orders/resolutions/notifications has been issued by MIDC or any competent authority with respect to the Company Land;

(v) There is free, clear and unhindered ingress, egress and access to the Company Land directly from an existing 18 meter wide road. There exist no circumstances that would affect such free ingress and egress to the Company Land, in any manner whatsoever;

(xviii) Subject to the rights of MIDC and execution of the ATL, there are no restrictions under the applicable Laws which may obstruct the interest, and enjoyment and use of, the Company Land by the Company;

(xix) There are no power lines or high tension electricity lines running through, under or over the Company Land;

(xx) There are no Persons who are physically in use, occupation or possession of the Company Land and there are no instances of Persons claiming any rights whatsoever in the Company Land or any part thereof;

(xxi) There is no private or governmental action, or investigation pending before any Governmental Authority which is ongoing or which may have an adverse effect on the right/title/interest of MIDC and/or the Company in the Company Land and the marketability of the Company Land;

(xxii) There does not exist any condemnation, eminent domain or compulsory land acquisition or requisition proceedings, actual or threatened, that affects the Company Land. The Company Land or any part thereof is not included in any notified or intended schemes of improvement of any Governmental Authorities. Without prejudice to the generality of the foregoing, no (a) claim, demand and requisition from any Governmental Authority with respect to the Company Land or any part thereof, and (b) notice from any Governmental Authority under any applicable Laws (including the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 (previously the Land Acquisition Act, 1894), the Maharashtra Regional and Town Planning Act, 1966) has been received by or served on the Company in respect of the Company Land or any part thereof whereby the lease of the Company Land or any part thereof will in any manner be restricted, affected, jeopardized or encumbered;

(xxiii) There are no claims, proceedings, arbitrations or Litigations (subsisting or threatened) in respect to the Company Land or any part thereof, including but not limited to compensation claims/ title or easementary litigations arising from the previous owners from whom the Company Land has been acquired by MIDC, to the knowledge of the Promoters;

(xxiv) The Company has not availed of any subsidies or other fiscal benefits (save and except the (a) concession on land rate under the GoM Letters; and (b) stamp duty exemption under the Exemption Certificate;

(xxvii) The Company is not required to obtain any locational clearance from the competent authority in respect of the Company Land;

(xxviii) The Company has paid in full an aggregate amount of INR 20,40,00,000/- (Indian Rupees Twenty Crores Forty Lakhs only) to MIDC in connection with the allotment and lease of the Company Land, which comprises of the entire land premium and all other charges, and includes all amounts demanded or invoiced by MIDC and/or any other applicable Governmental Authority up to the date hereof in respect of such allotment and lease of the Company Land. No further amounts (whether by way of premium, instalments, additional consideration, interest, penalty or otherwise) are outstanding, claimed, or will become payable by the Company to MIDC and/or any such authority in respect of the allotment and lease of the Company Land;

(xxix) The Promoters have not omitted to disclose to HIPL any material fact which is within the Knowledge of the Promoters in respect of the Company Land or any part thereof;

(xxx) The Company Land or any part thereof is not included in any notified or intended schemes of improvement of any Governmental Authorities; and

(xxxi) The Company Land is suitable for development and operation of warehouses and/or a logistics park.

11. Immovable Assets as of ATL Date Title Representations

The warranties set out under this Paragraph 11 shall be referred to collectively as the "**ATL Date Title Representations**":

(i) MIDC is the sole, absolute and undisputed holder of the Company Land;

(ii) MIDC has handed over the possession of the Company Land to the Company vide the Possession Letter;

(iii) The Company shall be entitled to the Leasehold Interest in the Company Land in terms of ATL read with the MIDC Allotment Order;

(iv) The Company Land is entitled to 1 FSI as computed on the Company Land. As per the applicable Laws, the Company Land is overall entitled to 1 FSI ("**Maximum**

Development Potential”), which is fully utilizable by the Company for the Project. The Company Land is suitable for development and operation of warehouses and/or a logistics park with the Maximum Development Potential;

(v) The MIDC Letters, GoM Letters, Possession Letter and ATL in favour of the Company are valid and subsisting and the Company has complied with all the terms and conditions recorded therein *(as may be applicable upto the date of the ATL)* and in the applicable MIDC and/or statutory policies / circulars /orders/resolutions/notifications including but not limited to payment of any earnest money, deposit, land premium, costs stated therein, procurement of necessary approvals and submission of the forms as recorded therein and is not in breach and has not received any notice of breach/demand notice from MIDC or any competent authority in this regard. The Company has not committed any breach of the MIDC Letters and GoM Letters, Possession Letter, ATL and MIDC and/or statutory policies/circulars/orders/resolutions/notifications. No notice of breach and/or termination of the MIDC Letters, GoM Letters, Possession Letter, ATL or breach of any other MIDC and/or statutory policies /circulars/orders/resolutions/notifications has been issued by MIDC with respect to the Company Land;

(vi) The Company has paid the total land premium amounting to Rs. 20,40,00,000/- (Rs. Twenty Crore Forty Lakhs Only) to MIDC payable under the MIDC Letters in respect of the Company Land.

(vii) MIDC has not entered into any arrangements or agreements, agreeing to transfer, alienate, or grant any right, title or interest whatsoever in favour of any third party in any manner whatsoever or not invited any bids nor conducted any public auction, over or in respect of the Company Land and has not accepted or received any earnest money, advance, deposit or other amounts whatsoever in respect thereof from any third party;

(viii) Subject to the rights of MIDC, the Company is in absolute, peaceful, vacant and undisputed physical possession of the Company Land, and there are no encroachments, buildings or structures, including any natural or man-made structures, constructed thereon;

(ix) No Person other than the Company and MIDC (in its capacity as the holder of the Company Land) has any subsisting right, title, interest or entitlement in respect of the Company Land;

(x) The Company has conducted a physical survey and measurement of the Company Land and the description of the Company Land included in this Agreement and its boundaries as reflected in this Agreement are true and accurate;

(xi) There are no Persons who are physically in use, occupation or possession of the Company Land and there are no instances of Persons claiming any rights whatsoever in the Company Land or any part thereof;

(xii) The Company is in possession and custody of the Original Title Documents;

(xiii) The Company does not own or hold and is not in possession of any land parcels other than the Company Land and has not encroached upon any land parcels adjacent to the Company Land;

(xiv) There is free, clear and unhindered ingress, egress and access to the Company Land directly from existing 18 meter wide public road. There exist no circumstances that would affect such free ingress and egress to the Company Land, in any manner whatsoever;

(xv) The Company Land does not include any areas that are (a) listed as of special architectural, historic and religious significance, or (b) part of a conservation area, or (c) reserved for any public purpose or use, or (d) earmarked as right of way or meant for easement rights granted to any Third Party through the Company Land,. The Company Land and any portion thereof does not form a part of any special economic zone notified under applicable Laws. The Company Land is located outside any buffer zones of water bodies (including water channels and nullahs), coastal areas, railway lines, and protected wildlife parks / sanctuaries or any other ecological clusters;

(xvi) There does not exist any condemnation, eminent domain or compulsory land acquisition or requisition proceedings, actual or threatened, that affects the Company Land. The Company Land or any part thereof is not included in any notified or intended schemes of improvement of any Governmental Authorities. The Company Land or any part thereof is not affected by any notice of acquisition or requisition. Without prejudice to the generality of the foregoing, no (a) claim, demand and requisition from any Governmental Authority with respect to the Company Land or any part thereof and (b) notice from any Governmental Authority under any applicable Laws (including the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 (previously the Land Acquisition Act, 1894), the Maharashtra Regional and Town Planning Act, 1966) has been received by or served on the Company in respect of the Company Land or any part thereof whereby the lease of the Company Land or any part thereof will in any manner be restricted, affected, jeopardized or encumbered;

(xvii) The Company has not received any notice of attachment of the Company Land, nor has the Company Land been attached by any Governmental Authority for recovery of any Taxes recoverable as arrears of land revenue;

(xviii) The Company is not in arrears of payment of any Taxes, and has not received any notice from the Tax Authorities for recovery of arrears of Tax and that there are no proceedings pending against it for recovery of arrears under the IT Act or by any department of the Government, Central or State or before any arbitrator touching or affecting the Company Land or any part thereof, and the Company has not been served any notice under rule 2 of the Second Schedule of the IT Act in respect of the Company Land or any part thereof;

(xix) No notice has been served on the Company by any Governmental Authority which might impair, prevent or otherwise interfere with the Company's interest in the Company Land and its ability to develop and operate warehouses and/or a logistics park thereon;

(xx) All the Governmental Approvals issued in respect of the Company Land by the Governmental Authorities are valid and subsisting and the Company has not received any notice from the concerned Governmental Authorities in relation to breach of such Governmental Approvals in respect of the Company Land;

(xxi) The Company has not given any rights of easement, pathways, public road, traditional rights of use as access or otherwise over the Company Land and there are no third party right(s) existing over the Company Land and the Company has not received any notice from any third party claiming such rights over the Company Land or Project;

(xxii) The Company has not availed of any subsidies or other fiscal benefits (save and except the (a) concession on land rate under the GoM Letters; and (b) stamp duty exemption under the Exemption Certificate;

(xxiii) There is no requirement to pay any amounts to MIDC and/or any other Governmental Authorities in relation to the acquisition and perfection of the Leasehold Interest, or incur any other costs and expenses solely in relation thereto for stamp duty and registration fees;

(xxiv) The Company Land or any part thereof is not included in any notified or intended schemes of improvement of any Governmental Authorities;

(xxv) The Company is not required to obtain any locational clearance from the competent authority in respect of the Company Land;

(xxvi) There are no claims, proceedings, arbitrations or Litigations (subsisting or threatened) in respect to the Company Land or any part thereof, including but not limited to compensation claims/ title or easementary litigations arising from the previous owners from whom the Company Land has been acquired by MIDC, to the knowledge of the Promoters;

(xxvii) There is no private or governmental action, or investigation pending before any Governmental Authority which is ongoing or which may have an adverse effect on the right/title//interest of MIDC and/or the Company in Company Land and the marketability of the Company Land;

(xxviii) Neither the Company nor anyone on its behalf has done, committed or omitted to do any act, deed, matter or thing (whether written, oral or implied), whereby, the Company's right to hold, use, manage, occupy, construct, develop, assign, lease, sub-lease, license, mortgage, charge, lien or transfer the Company Land, or any part thereof, is or can be forfeited, extinguished or rendered void or voidable.

(xxix) There are no Persons other than the Company who are in use, occupation or possession of the Company Land and there are no instances of Persons claiming any rights whatsoever in the Company Land or any part thereof;

(xxx) The various portions comprising the Company Land are contiguous, form one composite block of land and completely bounded. There are no boundary disputes or encroachments with respect to the Company Land. No portion of the Company Land has any land which is kharab or is otherwise rendered unusable (including on account of any obstruction, existing structures, water bodies, nallahs or natural objects);

(xxxi) There are no outstanding electricity charges, water charges, property taxes, or any other dues (including any penalty and interest thereon) in relation to the Company Land;

(xxxii) The Company Land is not impacted by any road widening requirements, set back, reservations, amenity area requirement as per the applicable development control regulations;

(xxxiii) There are no power lines or high tension electricity lines running through, under or over the Company Land;

(xxxiv) Save and except the Company who has rights in the Company Land under the ATL and MIDC who is the holder of the Company Land, there is no Person, in any capacity including that of a lessee, sub-lessee, tenant or licensee, who has any right to use, occupy or enjoy the Company Land. The Company has not granted any such right or interest to any Person;

(xxxv) The Promoters have not omitted to disclose to HIPL any material fact, which is within their knowledge in respect of the Company Land or any part thereof;

(xxxvi) The Company shall not be required to pay any amounts to MIDC and/or any other Governmental Authorities in relation to the acquisition and perfection of the Leasehold Interest, or incur any other costs and expenses solely in relation thereto (including any stamp duty, registration fees, transfer charges, differential premium, change in land use or zoning charges, road width charges, charges payable under Laws pertaining to urban land ceiling, GST and other Taxes, and interests and penalties) other than: (a) the stamp duty and the registration fees applicable at the time of execution of the Lease Deed; and (b) the annual rent and other charges payable as set out under the ATL or the Lease Deed (as the case may be);

(xxxvii) The Company Land is suitable for development and operation of warehouses and/or a logistics park; and

(xxxviii) There are no matters, circumstances, claims, disputes, encumbrances, or other issues that would affect the Leasehold Interest to be procured or the Company's rights, title and interest therein.

12. Financial Statements

(i) The Company:

(a) keeps books and records which, in reasonable detail, truly and fairly reflects the transactions of the Company. The Company does not maintain any off-the-books accounts or more than one set of books, records or accounts; and

(b) maintains a system of internal financial controls sufficient to provide reasonable assurance that:

(1) transactions are executed and access to is permitted only in accordance with management's general or specific authorisation;

(2) preparation of financial statements are in conformity with applicable Accounting Principles; and

(3) the Company safeguards its Assets.

(ii) The Financial Statements of the Company were prepared in accordance with the books of account and other financial records of the Company.

(iii) The Financial Statements of the Company and the notes thereto (if any) present true and fair account of the financial position and results of operations and cash flow of the Company (if any), as of the respective dates and for the respective periods covered thereby.

(iv) The Financial Statements of the Company and the notes thereto (if any) have been or are prepared in accordance with applicable Law and Accounting Principles consistently applied and followed throughout the period indicated.

(v) The balance sheets reflected in the Financial Statements of the Company present true and fair representations of the Assets and Liabilities of the Company as of the dates specified therein.

(vi) The Financial Statements fully disclose all transactions between the Company, on the one hand, and a Related Party of the Company, on the other hand, and amounts outstanding thereunder.

(vii) The Financial Statements have adequate provisions for all Tax for which the Company is liable in respect of any transaction or event occurring or income derived for the periods covered thereby.

13. Tax

(i) The Company has withheld with respect to its employees and all other Third Parties, all applicable Taxes required to be withheld by applicable Law and has made payment of such Taxes to the appropriate Governmental Authorities within the due dates thereof.

(ii) All returns, computations, notices, deductions, withholdings and information which are or have been required to be made or given by the Company for any Taxation purposes have been made as required under applicable Laws (along with requisite penalty and/or fee, in case of any delayed/belated filings) for the period up to the ATL Execution Date and are true, correct and complete and are not the subject of any dispute with the taxation authorities and all Taxes have been deducted and filings with respect to the same have been done and completed in accordance with applicable Law.

(iii) There are no outstanding agreements, waivers or arrangements extending the statute of limitations with respect to any Taxes of the Company in effect.

(iv) There are no claims, proceedings, notices, enquiry letters, show cause notices, actions or demands against the Company in relation to Taxes including indirect Taxes, that are pending or threatened (in writing). No notices in relation to such claims, proceedings, actions or demands have been received by the Company from any Governmental Authority.

(v) All Taxes which are payable by the Company under applicable Law to the respective statutory or the Governmental Authority have been duly and timely paid and the Company does not have any liability for any unpaid Taxes.

(vi) The Company:

(a) is not a party to, nor has any outstanding obligation, under any Tax-sharing, Tax indemnity or Tax allocation agreement or arrangement; and

(b) is not, nor has it ever been, a member of an affiliated, consolidated, combined or unitary group for any period or a party to any joint venture, partnership or other agreement that could be treated as a partnership for Tax purposes, or has any liability for the Taxes of another Person, whether as a transferee or successor, by contract or otherwise.

(vii) The Company has not entered into any scheme or arrangement that was designed to wilfully avoid Taxes.

(viii) The Company is not treated for any Tax purpose as resident in a country other than India and the Company has not had a branch or permanent establishment in a country other than India.

(ix) The Company: (i) has complied with applicable Law relating to Taxes; and (ii) has appropriately claimed deductions or credits and made disallowances in, its Tax returns. The Company has filed true and complete returns, estimates, information statements, reports and other filings with the Governmental Authority that are due as on the ATL Execution Date. With respect to any period for which Tax returns and/or filings are not yet due and thus have not been filed, or for which Taxes are not yet due, the Company has made due and sufficient accruals for such Taxes in its books and records in accordance with applicable Laws.

(x) The Company has complied fully with all statutory requirements relating to the Tax enactments including but not limited to income-tax, good and services tax, goods & sales tax credit on valid goods & sales tax documents, as applicable), customs duties, excise duties, taxes on entry into local areas, and any other central and local levies and all notices, provisions and conditions made or issued thereunder including (for the avoidance of doubt) the terms of any agreement reached with any tax authority in India or any overseas jurisdiction (along with requisite penalty and/or fee, in case of any delayed/belated filings).

(xi) Since the Company's inception, no entity classification election has been filed in respect of the Company with the U.S. Internal Revenue Service.

(xii) The Company has not been Relevant for U.S. federal income tax purposes. "Relevant" for these purposes means that the classification of such entity for U.S. federal income tax purposes as either an association taxable as a corporation or an entity that is tax-transparent (i.e., either a partnership or an entity disregarded as separate from its owner) affects the liability of any Person for U.S. federal tax or information purpose.

(xiii) The Company has never filed a declaration in Form 10-IC as per Section 115BAA(5) of the IT Act..

(xiv) Outstanding Tax receivables, if any, are refundable.

(xv) All the deductions /allowances /expenditures claimed for the purpose of business of the Company by the Company in its respective tax returns have been incurred by the Company wholly and exclusively for the purpose of their respective businesses and are not excessive or unreasonable to the extent they are paid by the Company to persons referred to in Section 40A(2)(b) of the IT Act.

(xvi) The Company has complied with applicable Law relating to, and has appropriately claimed deductions, made disallowances, correctly capitalized assets, offered income and computed Tax, under applicable Law, in their Tax returns. All records which the Company is required to keep in respect of Taxes under applicable Law, or which would be needed to substantiate any claim made or position taken in relation to Taxes by the Company, have been duly kept by the Company.

PART C | HIPL REPRESENTATIONS AND WARRANTIES

1. HIPL has the full power, authority and capacity to execute this Agreement and perform and observe all the terms contained herein, and HIPL has taken all corporate actions as necessary to enter into, execute and deliver this Agreement and to consummate and perform the transactions and its obligations contemplated by this Agreement.

2. This Agreement has been duly and validly executed by HIPL and constitutes legal, valid and binding obligation of HIPL, enforceable against it in accordance with its terms.

3. HIPL is not bound by any Contract, which may restrict its right or ability to enter into this Agreement, perform its obligations or consummation of transactions contemplated in this Agreement, or which would be breached as a result of execution or performance of this Agreement.

4. The execution, delivery and performance by HIPL of this Agreement and the consummation of the transactions contemplated hereby does not and will not conflict with or violate any provisions of (i) constitutional documents of HIPL, (ii) any applicable Law, or (iii) any Order, judgment, writ, injunction or decree of any court or tribunal or Governmental Authority to which HIPL or its assets and properties are bound or affected.

5. No Consent or Governmental Approval to, from or with any Person is required on the part of HIPL in connection with the execution, delivery and performance of this Agreement, the compliance by it with any of the provisions hereof, or the consummation of the transactions contemplated herein.

6. No Order has been served on HIPL nor is HIPL aware of any petition pending or admitted for winding up (or other process whereby the Assets of HIPL are distributed amongst the creditors or shareholders or other contributories) of HIPL or for an administration order against HIPL.

PART D | VCPL REPRESENTATIONS AND WARRANTIES

1. VCPL has the full power, authority and capacity to execute this Agreement and perform and observe all the terms contained herein, and VCPL has taken all corporate actions as necessary to enter into, execute and deliver this Agreement and to consummate and perform the transactions and its obligations contemplated by this Agreement.

2. This Agreement has been duly and validly executed by VCPL and constitutes legal, valid and binding obligation of VCPL, enforceable against it in accordance with its terms.

3. VCPL is not bound by any Contract, which may restrict its right or ability to enter into this Agreement, perform its obligations or consummation of transactions contemplated in this Agreement, or which would be breached as a result of execution or performance of this Agreement.

4. The execution, delivery and performance by VCPL of this Agreement and the consummation of the transactions contemplated hereby does not and will not conflict with or violate any provisions of (i) constitutional documents of VCPL, (ii) any applicable Law, or (iii) any Order, judgment, writ, injunction or decree of any court or tribunal or Governmental Authority to which HIPL or its assets and properties are bound or affected.

5. No Consent or Governmental Approval to, from or with any Person is required on the part of VCPL in connection with the execution, delivery and performance of this Agreement, the compliance by it with any of the provisions hereof, or the consummation of the transactions contemplated herein.

6. No Order has been served on VCPL nor is VCPL aware of any petition pending or admitted for winding up (or other process whereby the Assets of VCPL are distributed amongst the creditors or shareholders or other contributories) of VCPL or for an administration order against VCPL.

SCHEDULE III

LIMITATIONS ON LIABILITY

Notwithstanding anything contained in Clause 7 or otherwise stated in this Agreement, the liability of an Indemnifying Persons shall be subject to the following limitations and specific exceptions:

1. An Indemnifying Persons shall not be liable in respect of any single incident of Loss incurred by the Indemnified Person unless the amount of such Loss exceeds Rs. 5,00,000 (Rupees Five Lakhs) ("**De-Minimis Amount**"). For the purposes of this Paragraph 1, all Losses related to a series of same or substantially similar facts, matters or circumstances, may be aggregated for reaching the De-Minimis Amount threshold. No indemnity Claim shall be made by an Indemnified Person unless the De-Minimis Amount has been reached.

2. No Indemnifying Persons shall be liable to indemnify any Indemnified Person for any Loss unless and until the aggregate of all De Minimis Amounts exceed Rs. 50,00,000 (Rupees Fifty Lakhs) ("**Threshold Loss**"). It is clarified that once the aggregate of the indemnity Claim exceeds the Threshold Loss, the Indemnifying Persons shall be liable for each indemnity Claim (from the first rupee) that is individually in excess of the De-Minimis Amount.

3. The Indemnifying Persons shall not be liable to indemnify or make any payments to an Indemnified Person for any Claim referred to in column (1) of the following table:

    (i) unless a notice for Claim or Third Party Claim has been given in respect of such Claim before the date (if any) specified in the adjacent row of column (2) of the following table; and

    (ii) for the amount which exceeds the aggregate monetary cap on Loss (if any) specified in the adjacent row of column (3) of the following table.

	(1)	**(2)**	**(3)**
	Type of Claim	**Time period for service of Claim notice from the Closing Date**	**Aggregate monetary cap on Loss**
A.	Breach of Fundamental Representations	Unlimited	Uncapped
B.	Breach of the Company Representations	Unlimited	Uncapped
C.	Breach of Land Title Representations	15 years	Aggregate Subscription Amount

4. Subject to Paragraph 5 of this **Schedule III** *(Limitations on Liability)* below, the total aggregate liability of the Indemnifying Persons under this Agreement

(including for any Specific Indemnity Matter) shall in no event exceed the Aggregate Subscription Amount.

5. It is hereby agreed and acknowledged between the Parties that the restrictions set out in this **Schedule III** *(Limitations on Liability)* shall not apply to any Loss incurred or suffered by the Indemnified Person arising out of, relating to or resulting from: (i) a breach of Fundamental Representations and/or Company Representations; (ii) claim under Clause 7.1(vi); or (iii) wilful misconduct or fraud/fraudulent misrepresentation by any of the Promoters in relation to the transactions contemplated under this Agreement.

6. Where one and the same Loss has been caused by more than one Claim, then the Indemnified Person shall be entitled to claim indemnity for the amount of such Loss only once.

7. In no event shall the Indemnifying Persons be liable for any remote, indirect or unforeseeable Losses.

8. If an indemnity Claim arises by reason of some liability which, at the time that the indemnity Claim is notified to an Indemnifying Persons, is contingent only, such Indemnifying Persons shall not be under any obligation to make any payment to the Indemnified Person thereunder until such time the contingent liability becomes an actual Loss and is due and payable; provided that, for the avoidance of doubt, nothing in this paragraph shall prevent any of the Indemnified Parties from notifying the Indemnifying Persons of such contingent claim for purposes of satisfying the notification deadlines in Paragraph 3 of this **Schedule III** *(Limitations on Liability).*

9. A breach of the covenants which are capable of remedy shall not entitle the Indemnified Person to indemnity unless the Indemnifying Persons is given a written notice of such breach by the Indemnified Person and such breach is not remedied within 30 (thirty) days after the date on which such notice is received by the Indemnifying Persons.

SCHEDULE IV

[*NOT USED*]

SCHEDULE V

CONDITIONS PRECEDENT SATISFACTION LETTER

[*Dated prior to the Closing Date*]

To,
[●]

Re: Investment Agreement dated [●], 2025 (the "Agreement") executed by and amongst Vidarbha Cargo Private Limited, Rajesh Steel Industries Private Limited, Ashish Agrawal, XSIO Logistics Parks Private Limited and Horizon Industrial Parks Limited.

I/We refer to the Agreement executed by the parties thereto. In this letter, all capitalized terms used but not defined shall have the meaning given to them under the Agreement.

I/We hereby certify, confirm, declare and acknowledge that:

1. The [Conditions Precedent set out in Clause 3.1 read with Schedule I] have been completed and satisfied [(other than the Conditions Precedent that can only be satisfied at Closing or have been waived by HIPL)] and certified copies of the necessary documents evidencing fulfillment of the [Conditions Precedent] are attached herewith or access to such documents have been electronically provided;

2. As of the date hereof, no event which would, or is reasonably likely to, individually or in the aggregate, have a Material Adverse Effect, has occurred and is continuing or is threatened in writing to occur; and

3. We have complied, and will comply, in all respects with all covenants and other agreements in the Agreement required to be performed and/or complied with on or prior to Closing.

The confirmations and statements contained in this letter shall be binding on us and on our successors and assigns.

[*Signature blocks to be included*]

SCHEDULE VI

DETAILS OF COMPANY LAND

Land admeasuring 1,20,000 square meters bearing Plot No. A-7 of Village Tarsi, Taluka Nagpur (Rural), District Nagpur, situated at the Additional Butibori Industrial Area (Nagpur), which is comprised within the larger lands admeasuring in the aggregate 27.44 Hectares (equivalent to approximately 2,74,400 square metres), bearing Survey No. 111/A, admeasuring 1.61 hectares; Survey No. 133/1, admeasuring 2.43 hectares; Survey No. 133/2, admeasuring 2.43 hectares; Survey No. 134, admeasuring 2.02 hectares; Survey No. 135, admeasuring 5.97 hectares; Survey No. 136, admeasuring 1.91 hectares; Survey No. 137, admeasuring 1.39 hectares; Survey No. 155, admeasuring 2.03 hectares; Survey No. 157/1, admeasuring 3.82 hectares; Survey No. 157/2/A, admeasuring 1.83 hectares; Survey No. 157/2/B/1, admeasuring 1 hectare; and Survey No. 157/2/B/2, admeasuring 1 hectare, all of Village Tarsi, Taluka Nagpur (Rural), District Nagpur situated in the Additional Butibori Industrial Area (Nagpur).

SCHEDULE VII

SHARECAPITAL DETAILS OF COMPANY

PART A: Authorized, Subscribed, Issued and Paid-Up Share Capital of the Company as on the Execution Date

Class of shares-Equity	Authorised capital	Issued capital	Subscribed capital	Paid up capital
Number of Equity Shares	1,00,000 Equity Shares	10,000 Equity Shares	10,000 Equity Shares	10,000 Equity Shares
Face value of each Equity Share (in INR)	INR 10/-	INR 10/-	INR 10/-	INR 10/-
Total amount of Equity Shares (in INR)	INR 10,00,000/-	INR 1,00,000/-	INR 1,00,000/-	INR 1,00,000/-

PART B: Shareholding Pattern of the Company as on the Execution Date

S. No.	Name of shareholder	No. of Equity Shares held	% of shareholding in Equity Shares
1.	VCPL	9999	99.99%
2.	Promoter 1 (as the nominee shareholder of VCPL)	1	0.01%
		Total	**100%**

SCHEDULE VIII

TERMS OF THE COMPANY OCDS

1. Face Value

Each Company OCDs shall have a face value of Rs. 10 (Rupees ten only).

2. Nature

The Company OCDs shall be unlisted, unsecured, optionally convertible debentures and redeemable in the manner set out herein.

3. Term & Security

Each Company OCDs shall have a tenure of 20 (twenty) years. The Company OCDs shall be unsecured.

4. Conversion

The Company OCDs shall convert with mutual consent of the Company OCDs holder and Company Board, at the fair value of Equity Shares of the Company (as on the date of conversion)

No fractional Equity Shares shall be issued upon the conversion of any Company OCDs and the number of Equity Shares to be issued shall be rounded to the next highest or lowest whole share, as may be determined by the Company Board.

5. Redemption

All or part of the Company OCDs may be redeemed at any time with the mutual consent of all the Company OCDs holders and the Company Board at face value or such other price as may be determined by the Company Board.

6. Coupon

The Company and the Company OCDs holder shall mutually agree on the coupon payable (if any) on the Company OCDs for each financial year.

7. Maturity

In the event that, for any reason whatsoever, the conversion or redemption of the Company OCDs does not occur in accordance with the terms herein within 19 (nineteen) years 11 months from the date of their issue, then within 30 (thirty) days from such date, the Company OCDs shall be redeemed at face value or such other price as may be determined by the Company Board.

8. Governing Law

The Company OCDs shall be governed by the laws of India.

9. Transfer

The Company OCDs shall be transferable in the manner set out in the Articles, if applicable.

SCHEDULE IX

ORIGINAL TITLE DOCUMENTS

1. Letter dated April 29, 2025, bearing reference no. Ja. Kr. Mauvim/Prana/1010/2025, issued by MIDC in favor of the Company, whereby MIDC approved the applications submitted by the Company , for reservation of the Company Land and demanded payment of earnest money deposit amounting to INR 1,33,57,520/-;

2. Letter dated May 6, 2025, bearing reference no. Ja. Kr. Mauvim/Prana/1072/2025, issued by MIDC in favor of the Company, whereby MIDC confirmed the receipt of earnest money deposit amounting to INR 1,33,57,520/- and reserved the Company Land in the name of the Company until November 5, 2025;

3. Offer Letter dated June 2, 2025, bearing letter no. MIDC/RO(NAGPUR)/Addl. Butibori/LMS-53/1422/2025, issued by MIDC in favor of the Company, whereby MIDC offered to allot the Company Land (admeasuring 1,21,432 square meters) on an 'As is where is' basis;

4. Letter dated October 20, 2025, bearing reference no. Mauvim/Prana/3311/2025 issued by MIDC in favor of the Company, whereby MIDC has *inter-alia* confirmed the completion of the land acquisition process and provided the Survey Nos. 111/A, 133, 134, 135, 136, 137, 155 and 157 as constituting the Company Land;

5. Allotment Order dated October 28, 2025, bearing reference no. MIDC/RO(NAGPUR)/Addl. Butibori/LMS-53/3333/2025, issued by the MIDC, in respect of the allotment of Company Land in favour of the Company on an 'As is where is' basis;

6. Letter dated June 20, 2025, bearing reference no. MLP-2025/C.R. 142/Ind 2, issued by the State Government of Maharashtra, (Industries, Energy, Labour and Mining Department) to the Company, whereby the Government of Maharashtra has conferred the status of a 'Mega Logistics Park' to the Company Land;

7. Letter dated August 11, 2025, bearing reference no. MLP-2025/C.R. 142/Ind 2, issued by the State Government of Maharashtra to the Company, whereby the Government of Maharashtra has agreed to consider various exemptions/concessions;

8. Possession Receipt dated November 21, 2025, issued by the MIDC, and countersigned by Company, in respect of the handover of physical possession of the Company Land by MIDC to the Company; and

9. ATL.

SCHEDULE X

POST-CLOSING COVENANTS

1. The Promoters shall have: (i) procured the fulfilment of the ATL Milestone to the satisfaction of HIPL; and (ii) duly paid all charges, amounts and dues payable, and/or costs incurred, in respect thereof, including all stamp duty (as applicable), registration fees (as applicable), differential premium (if any), change in land use or zoning charges, charges payable under Laws pertaining to urban land ceiling (if any), GST and other Taxes, and interests and penalties and such other payments, in each case to MIDC and/or any other relevant Governmental Authorities for achieving the ATL Milestone.

2. The Promoters shall ensure that the Company Land is free of all encroachments, structures (whether permanent or temporary in nature), movable goods and materials to the satisfaction of HIPL.

3. There shall be no Encumbrances or hindrances, or restrictions on access, to, on or from the Company Land.

4. The Promoters shall have procured the completion and fulfilment of such other actions, deliverables and filings as may be mutually agreed in writing between HIPL and the Promoters.

SCHEDULE XI

SHAREHOLDING PATTERN OF THE COMPANY PRIOR TO AND AFTER ACQUISITION COMPLETION

PART A: SHAREHOLDING PATTERN OF THE COMPANY IMMEDIATELY PRIOR TO ACQUISITION COMPLETION ON THE ACQUISITION DATE

Name of the Shareholder	No. of Equity Shares	Percentage of Equity Shares
Prior Shareholder 1	5,000	50%
Prior Shareholder 2	5,000	50%
Total	**10,000**	**100%**

PART B: PART A: SHAREHOLDING PATTERN OF THE COMPANY IMMEDIATELY AFTER ACQUISITION COMPLETION ON THE ACQUISITION DATE

Name of the Shareholder	No. of Equity Shares	Percentage of Equity Shares
VCPL	9999	99.99%
Ashish (as VCPL's nominee shareholder)	1	0.01%
Total	**10,000**	**100%**